From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>, Stephen Swiber <Stephen.Swiber@la.gov>
Subject: FW: Business Insider reporter asking about Carbon capture Lake Charles PS
Date: Thu, 6 Feb 2025 19:58:32 +0000
Importance: Normal

Reporter asking about plans for carbon capture associated with Lake Charles power station – the simple answer is that DENR doesn't have anything to do with the capture side of it.

Ok to respond?

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Daniel Geiger <dgeiger@insider.com>
Sent: Thursday, February 6, 2025 1:55 PM
To: DNR Public Information <info@LA.GOV>
Subject: Carbon capture Lake Charles PS

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Hi, I'm trying to learn more about the plans to use carbon capture at the Lake Charles Power Station. Is there an expert I could chat with? Please let me know, thank you,
Dan

Daniel Geiger
Senior Correspondent

BUSINESS INSIDER

Cell: [redacted]
One Liberty Plaza, 8th FL, New York, NY 10006
Website | LinkedIn | X

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Stephen Swiber <Stephen.Swiber@LA.GOV>, Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: RE: The Advocate Inquiry
Date: Mon, 6 Jan 2025 15:43:29 +0000
Importance: Normal

He's not giving anything away in the request, but it wouldn't surprise me if he used this a entry point to raise wider expropriation questions. But we only provide one document (the certificate) used by an operator to bring before the courts, which is where the actual expropriation decision is made.

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Stephen Swiber <Stephen.Swiber@LA.GOV>
Sent: Monday, January 6, 2025 9:41 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>; Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: Re: The Advocate Inquiry

Could it be more broadly about expropriation issues for CCUS pipelines?

Anyway, ok by me to provide public records

Get Outlook for iOS

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Monday, January 6, 2025 9:25:44 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: The Advocate Inquiry

The Advocate asking for records on Denbury expropriation of land for a CO2 pipeline. Long story short, this is probably tied to dispute brought by landowner who thinks their original right-of-way contract with Denbury means the landowner now owns a section of Denbury's Green pipeline (built in 2009 for moving CO2 for EOR and CCS across the state) and Denbury says different, so they are fighting about it in court. Denbury sought new Certificate of Public Convenience and Necessity in 2024 that Conservation initially denied for lack of need, then Denbury came back making a stronger case for why they needed it and it was granted. These are public records that media can have and we have three certificates for the company - from 2008 (original), from 2014 (change of operator name), and 2024 (re-asserting need to expropriate)

Okay to respond?

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Christopher Cartwright <christopher.cartwright@theadvocate.com>
Sent: Saturday, January 4, 2025 2:36 PM
To: DNR Public Information <info@LA.GOV>
Subject: The Advocate Inquiry

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Hi there,

I'm a reporter with The Advocate newspaper, and I'm writing about a few expropriation cases in Ascension Parish brought by Denbury Gulf Coast Pipelines LLC. I was wondering if the company had received a certificate of public convenience and necessity pursuant to RS 30:1107. If so, could I be sent a copy of it?

Sincerely,

Christopher Cartwright
Reporter, *The Advocate*
christopher.cartwright@theadvocate.com
[redacted]

Notice:
This transmission may contain privileged and confidential information. It is intended only for the use of the person(s) named above. If you are not the intended recipient, you are notified that any review, dissemination, distribution, or duplication of this communication is strictly prohibited.

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>, Stephen Swiber <Stephen.Swiber@LA.GOV>, Kate Kelly <Kate.Kelly@LA.GOV>
Subject: RE: Reporter Inquiry involving CCS issues
Date: Thu, 19 Dec 2024 21:26:13 +0000
Importance: Normal
Inline-Images: image001.jpg

Thanks much

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Sent: Thursday, December 19, 2024 2:13 PM
To: Stephen Swiber <Stephen.Swiber@LA.GOV>; Patrick Courreges <Patrick.Courreges@LA.GOV>; Kate Kelly <Kate.Kelly@LA.GOV>
Subject: Re: Reporter Inquiry involving CCS issues

Good to go!

From: Stephen Swiber Stephen.Swiber@LA.GOV
Date: Thursday, December 19, 2024 at 8:52 AM
To: Patrick Courreges Patrick.Courreges@LA.GOV , Kate Kelly Kate.Kelly@LA.GOV , Elizabeth Crochet Elizabeth.Crochet@LA.GOV
Subject: Re: Reporter Inquiry involving CCS issues

Good with me

Get Outlook for iOS

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Thursday, December 19, 2024 8:52:06 AM
To: Stephen Swiber <Stephen.Swiber@LA.GOV>; Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: RE: Reporter Inquiry involving CCS issues

Bumping this for visibility – ok to respond?

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Stephen Swiber <Stephen.Swiber@LA.GOV>
Sent: Wednesday, December 18, 2024 10:28 AM

To: Patrick Courreges <Patrick.Courreges@LA.GOV>; Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: Re: Reporter Inquiry involving CCS issues

Egad, what a reporter!

Anything we can say to put out the fire works with me

Get Outlook for iOS

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Wednesday, December 18, 2024 10:22:22 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: Reporter Inquiry involving CCS issues

Reporter with the radio station that appears to be the prime daily news source in Vernon Parish and the other central Louisiana parishes bordering Texas is following up on the compliance order we gave to CapturePoint (a CCS company in an area where CCS is very controversial) on a rig supply water well last year. Apparently, folks who don't want CCS have created a narrative that this rig supply well for a Class V test well has contaminated the Calcasieu River somehow. A rig supply well is just a water well that provides the water needed for drilling operations.

Our response would be that CapturePoint had standing water around their wellhead from a levee that they put up AFTER the well was drilled, which is a violation of our rules about potential connection between surface and groundwater, but in this case they had grouted (sealed around the well pipe) all the way to surface so it wasn't so much a violation of actual safety standards as it was not filling out the paperwork asking for the variance which would have required them to grout to surface (which they did anyway). And they plugged the well immediately after we send a compliance order (they were done with it anyway).

OK to respond?

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Jessica Herring <reporter@kvvp.com>
Sent: Wednesday, December 18, 2024 10:05 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: Inquiry

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Good morning Patrick,

So sorry to bother you. As I am sure you are aware of we have a large group of people here in Vernon Parish who are opposed to Carbon Sequestration. They have created a Facebook group and have started disseminating misinformation.

Apparently there was an incident in April of 2023 when the LDNR sent Capture Point LLC a notice of violation in March of 2023 for violating ground water resources management law. The Facebook group has somehow

gotten this information and has begun to misrepresent the situation implying that it has contaminated the Calcasieu River.

While I have no opinion on the matter as a journalist, I do have issues with misinformation and am attempting to report the story appropriately.

According to Capture Point, in an attempt to direct rain water away from the water well and the site well, they dug a ditch for the rain water to go in which caused them to "create a body of water." They also advised they immediately addressed the issue and had rectified the situation with 24 hours of notice.

I am just trying to substantiate the claims from Capture Point and get the appropriate information out there. I would also be willing to include anything you would like to add to the story.

--



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This transmission may contain privileged and confidential information. It is intended only for the use of the person(s) named above. If you are not the intended recipient, you are notified that any review, dissemination, distribution, or duplication of this communication is strictly prohibited.

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>, Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: RE: Primacy in Louisiana Gulf waters?
Date: Thu, 21 Nov 2024 16:22:47 +0000
Importance: Normal
Inline-Images: image001.png

Thanks much

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Kate Kelly <Kate.Kelly@LA.GOV>
Sent: Thursday, November 21, 2024 10:22 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: Re: Primacy in Louisiana Gulf waters?

I am good with it

Kate Kelly
Director of Communications
Office of Governor Jeff Landry
www.Louisiana.gov

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Date: Thursday, November 21, 2024 at 10:01 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>, Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: Primacy in Louisiana Gulf waters?

Reporter asking about recently announced CCS project in state waters, the answers to her questions are –
Is DENR responsible for regulating Class VI wells and other permits regarding carbon sequestration in Louisiana's waters in the Gulf of Mexico?
Yes, DENR's Injection and Mining Division (IMD) has regulatory authority over Class VI projects in state waters

Is the state currently evaluating any such projects?
IMD staff have heard about this project, but no application has been submitted yet. IMD is currently reviewing an application from Venture Global for a project that would involve sequestration under state waters.

Okay to respond and handle follow-ups?

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Pam Radtke <pam@floodlightnews.org>
Sent: Wednesday, November 20, 2024 3:11 PM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: Primacy in Louisiana Gulf waters?

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Hi Patrick,

I hope you are doing well. Is DENR responsible for regulating Class VI wells and other permits regarding carbon sequestration in Louisiana's waters in the Gulf of Mexico? Is the state currently evaluating any such projects? (I want to do a story about the $26 million for OnStream's carbon storage hub off Monkey Island)
Thanks
Pam

--
Pam Radtke
[redacted]
Image removed by sender.
Floodlight is a nonprofit newsroom that partners with local and national outlets to investigate the interests holding back action on climate change.

Notice:
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From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Stephen Swiber <Stephen.Swiber@LA.GOV>, Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: RE: Reporter Inquiry involving CCS issues
Date: Wed, 18 Dec 2024 22:35:30 +0000
Importance: Normal
Inline-Images: image001.jpg

I wouldn't say she's a pure friendly, but about the closest thing we get on that side of the state on this subject – we at least get a fair shake

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Stephen Swiber <Stephen.Swiber@LA.GOV>
Sent: Wednesday, December 18, 2024 10:28 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>; Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: Re: Reporter Inquiry involving CCS issues

Egad, what a reporter!

Anything we can say to put out the fire works with me

Get Outlook for iOS

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Wednesday, December 18, 2024 10:22:22 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: Reporter Inquiry involving CCS issues

Reporter with the radio station that appears to be the prime daily news source in Vernon Parish and the other central Louisiana parishes bordering Texas is following up on the compliance order we gave to CapturePoint (a CCS company in an area where CCS is very controversial) on a rig supply water well last year. Apparently, folks who don't want CCS have created a narrative that this rig supply well for a Class V test well has contaminated the Calcasieu River somehow. A rig supply well is just a water well that provides the water needed for drilling operations.

Our response would be that CapturePoint had standing water around their wellhead from a levee that they put up AFTER the well was drilled, which is a violation of our rules about potential connection between surface and groundwater, but in this case they had grouted (sealed around the well pipe) all the way to surface so it wasn't so much a violation of actual safety standards as it was not filling out the paperwork asking for the variance which would have required them to grout to surface (which they did anyway). And they plugged the well immediately after we send a compliance order (they were done with it anyway).

OK to respond?

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Jessica Herring <reporter@kvvp.com>
Sent: Wednesday, December 18, 2024 10:05 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: Inquiry

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Good morning Patrick,

So sorry to bother you. As I am sure you are aware of we have a large group of people here in Vernon Parish who are opposed to Carbon Sequestration. They have created a Facebook group and have started disseminating misinformation.

Apparently there was an incident in April of 2023 when the LDNR sent Capture Point LLC a notice of violation in March of 2023 for violating ground water resources management law. The Facebook group has somehow gotten this information and has begun to misrepresent the situation implying that it has contaminated the Calcasieu River.

While I have no opinion on the matter as a journalist, I do have issues with misinformation and am attempting to report the story appropriately.

According to Capture Point, in an attempt to direct rain water away from the water well and the site well, they dug a ditch for the rain water to go in which caused them to "create a body of water." They also advised they immediately addressed the issue and had rectified the situation with 24 hours of notice.

I am just trying to substantiate the claims from Capture Point and get the appropriate information out there. I would also be willing to include anything you would like to add to the story.

--



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From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>, Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: Urgent: Interview Request/Request for Comment: Venture Global CP2 Dredging and Coastal Use Permit
Date: Wed, 13 Aug 2025 13:41:26 +0000
Importance: Normal

FYI –
Reporter following up on dredge sediments that got away from project in the ship channel in Cameron Parish. However, reporter is confused – while Venture Global DOES have a Coastal Use Permit (CUP) where some dredging is involved, that's not what this is. This is Venture Global doing some dredging to deepen the channel for the Cameron Parish Port District. They were dumping dredge material to a confinement on land to be used to restore wetlands in the nearby wildlife refuge, and while trying to de-water the dredge slurry, too much of the sediment got out with the water they were putting back in the bayou. The upshot is that this is the Cameron Port's project (and their CUP) and VG is acting as the contractor (though VG's CP2 will obviously benefit from a deeper ship channel) and CP2's CUP is not involved with it.

Going to be reaching out to explain this to the reporter

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Philip McKenna <phil.mckenna@insideclimatenews.org>
Sent: Tuesday, August 12, 2025 10:22 AM
To: DNR Public Information <info@LA.GOV>
Subject: Urgent: Interview Request/Request for Comment: Venture Global CP2 Dredging and Coastal Use Permit

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Dear DENR Media Team,

I'm a journalist writing about ongoing construction including dredging related to Venture Global's Calcasieu Pass 2 LNG terminal in Cameron Parish, Louisiana.
For my article I would like to speak with someone or receive written comment from the Louisiana Department of Energy and Natural Resources to hear more about the dredging and the Coastal Use Permit your department issued for the project.

Specifically, I would like you to respond to the following;

A recent local media report notes that Venture Global temporarily paused dredging for CP2 due to a release of dredged material beyond the intended containment area. Can you please respond to the following questions;
1. When did dredging stop related to this recent incident?
2. Was the stoppage a full stoppage of all dredging activity related to CP2 or only a partial stoppage of some dredging activity related to the construction of CP2?

3. When do you anticipate dredging will resume?
4. What measures will be taken to ensure that dredged material does not disperse beyond the intended containment area once dredging resumes?

5. Separate from the recent incident, the Final Environmental Impact Statement for CP2 issued by the Federal Energy Regulatory Commission noted the following;
"We received comments during scoping periods and in response to the draft EIS from RESTORE regarding dredging timing restrictions during times of aquatic species migrations. Based on a migratory clock developed by RESTORE, three migratory 'pulses' of various fish and crustaceans appear to occur during March and April, June and July, and September. Additionally, we received a comment from the LDWF expressing concern regarding potential impacts on aquatic species reproductions as well as commercial harvest seasons from dredging. CP2 LNG does not anticipate timing restrictions on dredging and, as currently proposed, would dredge 6 days a week for a period of 12 to 18 months."

I see in your amended Coastal Use Permit for CP2 (attached) one of the special conditions that must be met is that "The mitigation project shall be completed within 12 months of initiation."

Are there any other special conditions, such as pauses during migration periods, that must be met to protect shrimp populations?

Please let me know as soon as possible if there is a time I can speak with someone from DENR. My deadline for an interview or to receive written comment from your department is 6pm CT on Wednesday, August 13.

Best,
Phil

--
Phil McKenna | Reporter
[redacted]
Inside Climate News | @mckennapr
Pronouns: he/him

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Dustin Davidson <Dustin.Davidson@LA.GOV>, Stephen Swiber <Stephen.Swiber@LA.GOV>, Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: FW: Calcasieu Parish CO2 pipeline
Date: Tue, 2 Sep 2025 17:08:38 +0000
Importance: Normal
Attachments: Screenshot_2025-09-02_104817.png; Screenshot_2025-09-02_104824.png
Inline-Images: image001.jpg

FYI – KPLC reporter following up on citizen questions about upcoming hearing on CO2 pipeline hearing on certificate of public convenience and necessity (basically it's a document that the operator would bring to a court hearing seeking to expropriate right of way for pipeline). I will explain that our notice requirements are set in law, are primarily aimed at landowners whose property the proposed pipeline and any new connecting lines would cross through and that this hearing does not deal with the merits or safety of CO2, just with determining whether the stated purpose meets state law requirements to receive the certificate.

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Brendan Brown <Brendan.Brown@kplctv.com>
Sent: Tuesday, September 2, 2025 10:51 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: Calcasieu Parish CO2 pipeline

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Good morning,

Some residents took to Facebook asking questions about this CO2 project. We wanted to see if we could interview Interim Director Steven Giambrone about this project and what the feedback from the residents would do for it. Also if we could receive a copy of these documents to review that would be great.

Brendan Brown
Reporter
KPLC-TV
Cell: [redacted]
320 Division St., Lake Charles, LA 70601

LEGAL NOTICE

STATE OF LOUISIANA
OFFICE OF CONSERVATION
BATON ROUGE, LOUISIANA

DOCKET NO. PL 25-016

In accordance with the laws of the State of Louisiana, and with reference to the provisions of Title 30 of the Louisiana Revised Statutes of 1950, as amended by Act 16 of the Extraordinary Session of 1973, being Chapter 7 of Title 30, and particularly Section 542(a) of said Act, a public hearing will be held in the La Belle Room located on the first floor of the LaSalle Office Building, 617 North 3rd Street, Baton Rouge, Louisiana, at 9:00 o'clock a.m. on September 9, 2025, upon the application of **LOW CARBON LOGISTICS CCS TRANSPORT LLC**.

At such hearing the Commissioner will consider evidence relative to the issuance of an order upon the application of **LOW CARBON LOGISTICS CCS TRANSPORT LLC** for a certificate of public convenience and necessity for pipeline facilities transporting carbon dioxide in the Parish of Calcasieu, State of Louisiana, pursuant to La. R.S. 30:1107(B).

A copy of the application is on file with the Office of Conservation and may be examined during normal business hours.

Comments and views regarding the application should be directed in written form to be received not later than 5:00 o'clock p.m., September 8, 2025. Oral comments will be received at the hearing but should be brief and not cover the entire matters contained in the written comments. If accommodations are required under the Americans with Disabilities Act, please contact the Pipeline Division at (225) 342-5505 within ten working days of the hearing date. Direct comments to:

STEVEN M. GIAMBRONE
Interim Director
Post Office Box 94275
Baton Rouge, Louisiana 70804-9275
RE: Docket No. PL 25-016

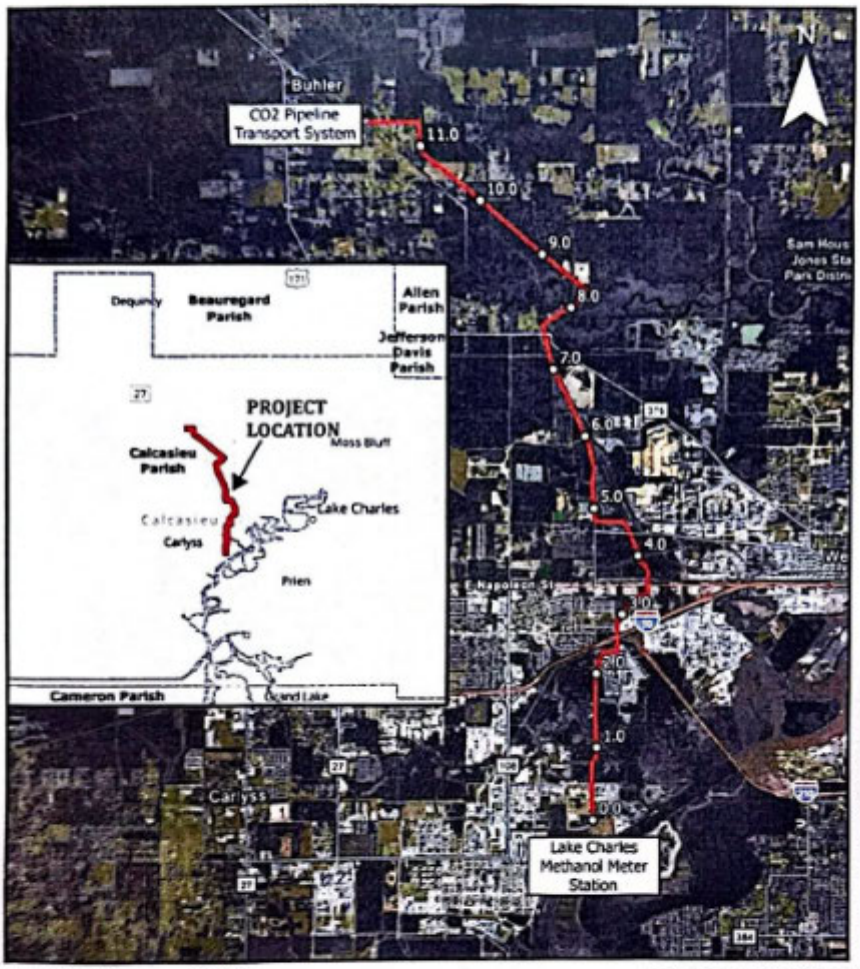
All parties having interest in the aforesaid shall take notice thereof.

BY ORDER OF:

Steven M. Giambrone
Office of Conservation

EXHIBIT D

Map of Lake Charles Lateral



From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>, Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: The Advocate -- ExxonMobil suit
Date: Thu, 10 Jul 2025 15:58:26 +0000
Importance: Normal
Attachments: 2025-07-01_Verified_Complaint_for_Declaratory_and_Injunctive_Relief.pdf

---

FYI – David Mitchell with The Advocate reached out about ExxonMobil suing Allen Parish over their ordinance attempting to regulate injection wells in the parish (in reaction to CCS concerns). I told him that DENR doesn't have a role in that – it's a dispute between the operator and the parish and does not affect our regulations. Also advised him to check with Allen Parish, as media from that area have been reporting Allen Parish Police Jury is suspending enforcement of the ordinance and likely intend to rescind it next month.

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: David Mitchell <dmitchell@theadvocate.com>
Sent: Thursday, July 10, 2025 10:29 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: The Advocate -- ExxonMobil suit

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

What does DNR make of this development? ExxonMobil is suing Allen Parish over its permitting regime for CCS wells.
Exxon says the parish can't do what the state already does.

Is there any precedent in oil and gas or other areas you regulate for dual permitting regimes at the state and parish level?

Can you get back to me by this evening?

David J. Mitchell
Reporter
The Advocate
Environmental Team
[redacted]
@newsiedave
newsiedave.bsky.social
My work is supported with a grant from the Walton Family Foundation, administered by the Baton Rouge Area Foundation.

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF LOUISIANA – LAKE CHARLES DIVISION

EXXONMOBIL LOW CARBON SOLUTIONS ONSHORE STORAGE, LLC,

Plaintiff,

V.

ALLEN PARISH POLICE JURY; AND DOUG HEBERT, IN HIS OFFICIAL CAPACITY AS SHERIFF OF ALLEN PARISH, LOUISIANA

Defendants

CIVIL ACTION NO. 2:25-cv-937

JUDGE _____

MAGISTRATE JUDGE _____

VERIFIED COMPLAINT FOR
DECLARATORY AND INJUNCTIVE RELIEF

NOW INTO COURT, through undersigned counsel, comes Plaintiff, ExxonMobil Low Carbon Solutions Onshore Storage, LLC ("ExxonMobil"), which files this Verified Complaint seeking a judgment declaring that Ordinance No. 6656 adopted by the Allen Parish Police Jury ("Allen Parish Ordinance," "Ordinance No. 6656" or, simply, "the ordinance") is *ultra vires* and unenforceable, preempted by state law, and providing injunctive relief to bar its enforcement. Because Ordinance No. 6656 conflicts with controlling law and directly halts development of ExxonMobil's Class V test wells which are permitted by the State and ready to be constructed (but for this ordinance), ExxonMobil must seek judicial relief. Only a declaration of invalidity and an injunction against enforcement can safeguard ExxonMobil's contractual rights, customer obligations, State regulatory approvals, and the public benefits that will flow from the project.

INTRODUCTION

1. ExxonMobil files this Verified Complaint to protect two carbon-capture and sequestration ("CCS") projects—Hummingbird and Mockingbird—planned for Allen Parish.[1] ExxonMobil has invested years of scientific study and millions of dollars so that Louisiana manufacturers can ship lower-carbon products, Louisiana can attract new manufacturing facilities interested in producing such products, Louisiana communities can earn new tax revenue, and landowners can receive a new revenue stream associated with their property rights, in many cases in the form of millions of dollars in lease payments, storage fees, and easement payments.

2. The projects will capture industrial CO_2, transport it by pipeline, and store it approximately 1 mile beneath impermeable rock—using proven technology that has existed for decades–thereby permanently removing greenhouse gas emissions while safeguarding drinking-water sources and wetlands.

3. State regulators have already issued "APPROVAL TO CONSTRUCT" letters for the first exploratory Class V test wells at both the Mockingbird and Hummingbird sites after finding that ExxonMobil "met the interim requirements for permitting" and that drilling may proceed under strict environmental safeguards. Class V test wells are critical to gathering information for ExxonMobil's project, as they provide necessary injectivity testing data (among other subsurface data). No CO_2 injection will occur unless and until ExxonMobil later elects to

[1] On June 23, 2025, ExxonMobil received permits for the Hummingbird IZM Class V Stratigraphic Test Well (Serial No. 976260) and the Mockingbird IZM Class V Stratigraphic Test Well (Serial No. 976261). These permits and the supporting documentation are available publicly at https://www.dnr.louisiana.gov/page/permits-and-applications.

move forward with the project, after obtaining and analyzing information from the Mockingbird and Hummingbird Class V injection test wells, and after ExxonMobil receives a corresponding Class VI permit from the Louisiana Department of Energy and Natural Resources (LDENR) that authorizes CO_2 injection activities.

4. Yet the Allen Parish Police Jury adopted an ordinance (attached as Exhibit A and, upon information belief, assigned Ordinance No. 6656) that requires a Parish permit in addition to the already-issued LDENR permits and contains extremely onerous application procedures and permit requirements (and unquantifiable damages)—many of which are clearly in excess of existing State laws that ExxonMobil has already satisfied or will satisfy.

5. Further, Ordinance No. 6656 is drafted such that the Parish has complete discretion over whether a permit ever issues and is under no timeline to do so. In fact, ExxonMobil's permits for construction of the Class V wells **require** ExxonMobil to complete construction of the Class V wells by June 23, 2026, a deadline ExxonMobil risks missing due to the uncertain and unconstrained process mandated by the Allen Parish ordinance.

6. On May 5, 2025, the Allen Parish Police Jury convened a public hearing and adopted what it referred to as an "Injection Well Ordinance." A summary was published in the Kinder Courier-News on June 12, 2025. However, despite repeated requests, no final, official version of Ordinance No. 6656 has been made publicly available.

7. ExxonMobil received the copy of the ordinance attached hereto directly from Allen Parish employees. But it has been unable to receive or verify that it is the final version of the ordinance (again, despite numerous requests and attempts).

8. The version attached to this Complaint reflects, to the best of ExxonMobil's knowledge and understanding, the draft presented and approved at the May 5 hearing.

9. ExxonMobil has reviewed the Police Jury's minutes, monitored subsequent publications and updates, and is unaware of any revisions to the draft. Accordingly, ExxonMobil challenges Ordinance No. 6656 as adopted and request that the Court require the Parish to produce the final version in its responsive pleadings.

10. The ordinance directly conflicts and overlaps with the existing comprehensive state-and-federal regime that governs underground-injection control. ExxonMobil therefore seeks declaratory and injunctive relief to prevent enforcement of the unlawful ordinance and allow this beneficial project to advance.

11. Also at the May 5 meeting, the Police Jury simultaneously requested an expedited attorney general opinion regarding the legality of Ordinance No. 6656. Thereafter, a summary of the ordinance ran in *The Kinder Courier-News* on June 12, 2025, and, by operation of La. R.S. 33:1366 and 33:1367, became effective ten days later, on June 22, 2025—even though the Attorney General had not yet opined on the Police Jury's authority.

12. Ordinance No. 6656 purports to give the Allen Parish Police Jury the authority to regulate a field that the Louisiana Legislature wholly occupies and exclusively regulates. In fact, the Louisiana Legislature has expressly stated that "[i]t is the public policy of Louisiana and the purpose of this Chapter to provide for **a coordinated statewide program** related to the storage of carbon dioxide and to also fulfill the state's primary responsibility for assuring compliance with the federal Safe Drinking Water Act, including any amendments thereto related to the underground injection of carbon dioxide." La. R.S. 30:1102(A)(4) (emphasis added).[2]

13. By requiring a Parish permit for injection wells (including Class V wells), the

[2] Pursuant to Act 458 of the 2025 Regular Session, the Legislature is renumbering this section. It will be La. R.S. 30:1102(A)(2) after August 1, 2025.

Police Jury has exceeded its limited statutory powers to enact ordinances set forth in La. R.S. 33:1236, provided a redundant permit and regulatory scheme to the powers that Congress vested in the U.S. Environmental Protection Agency under the Safe Drinking Water Act and that the Legislature delegated to LDENR and other state agencies. Were Ordinance No. 6656 to be held valid and enforceable, the State, industry, administrators, public, communities, and all stakeholders would be expected to collectively navigate not only State law governing injection wells, but potentially 64 differing local ordinances across Louisiana's 64 unique parishes. Such parish-by-parish navigation of carbon storage and carbon injection rules is plainly contrary to the Legislature's statement that it is Louisiana public policy to have a "coordinated statewide program" for these activities.

14. A declaration of invalidity, reinforced by injunctive relief, is critical to safeguard ExxonMobil's contracts, Class V well permits, and the environmental and economic benefits the project would provide to Allen Parish, Allen Parish landowners, industrial customers located in Louisiana that have elected to capture emissions, and the State of Louisiana.

PARTIES

15. Plaintiff herein is **ExxonMobil Low Carbon Solutions Onshore Storage, LLC ("ExxonMobil")**, a limited-liability company with a principal place of business at 22777 Springwoods Village Parkway, Spring, Texas 77389. ExxonMobil is a single-member LLC whose sole member is Exxon Mobil Corporation, a New Jersey corporation with its principal place of business in Texas. ExxonMobil is therefore a citizen of New Jersey and Texas for purposes of diversity-of-citizenship jurisdiction.

16. Made Defendant herein is the **Allen Parish Police Jury**, the governing authority of Allen Parish, Louisiana. It is a political subdivision of the State of Louisiana and therefore a citizen of Louisiana for purposes of diversity-of-citizenship jurisdiction.

17. Made defendant herein is **Douglas L. "Doug" Hebert III**, solely in his official capacity as Sheriff of Allen Parish. Sheriff Hebert is the chief law-enforcement officer for Allen Parish under La. Const. art. V, § 27, making him (in his official capacity) a political subdivision of the State of Louisiana and a citizen of Louisiana for diversity purposes. As Sheriff, he would be responsible for enforcing the Allen Parish ordinance challenged in this action, and he is therefore a necessary party to a suit challenging the legality and enforceability of an Allen Parish ordinance.

JURISDICTION AND VENUE

18. This Court has original jurisdiction over this case pursuant to 28 U.S.C. § 1332 (diversity-of-citizenship jurisdiction).

19. ExxonMobil is a citizen of New Jersey and Texas, whereas the Defendants are each a citizen of Louisiana.

20. Accordingly, there is complete diversity between the parties.

21. ExxonMobil already spent more than $75,000 on route surveys, engineering work, and procurement for its pipeline project in Allen Parish; it cannot recoup those costs unless the Court nullifies Ordinance No. 6656 at issue. If ExxonMobil cannot proceed with its permitted construction, it will also forfeit well over $75,000 in additional capital committed to the project.

22. The Court has diversity jurisdiction because ExxonMobil is a citizen of New Jersey and Texas; each Defendant is a Louisiana citizen; and the amount in controversy exceeds $75,000, exclusive of interest and costs. 28 U.S.C. § 1332(a).

23. The Court also has federal-question jurisdiction under 28 U.S.C. § 1331 because the claims arise under U.S. Const. art. VI, cl. 2. (the Supremacy Clause) and 42. U.S.C. §1983.

24. This Court therefore has supplemental jurisdiction over any state law claims pursuant to 28 U.S.C. § 1367.

25. The Court may declare the parties' rights and duties under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202, and may issue injunctive relief under 28 U.S.C. § 1651 and Federal Rule of Civil Procedure 65.

26. Venue is proper under 28 U.S.C. § 1391(b)(1) and (2) because every Defendant resides in this District and Division, and events giving rise to these claims occurred here.

27. Each Defendant transacts business and enforces the challenged ordinance under color of state law solely within Allen Parish; the Court therefore has personal jurisdiction.

FACTUAL BACKGROUND

The Allen Parish Projects

28. Since December of 2022, ExxonMobil and its affiliates have entered into numerous subsurface carbon-storage agreements (the "storage agreements") with certain private landowner(s) located in Allen Parish, Louisiana. The storage agreements grant ExxonMobil the exclusive right to perform geologic and geophysical surveys, drill stratigraphic test wells (including the Class V test wells LDENR permitted on June 23, 2025), and permanently sequester carbon dioxide within the deep subsurface underlying the subject properties. The Allen Parish acreage is planned to be a key storage site that will be connected to the ExxonMobil's existing Gulf-Coast CO_2-pipeline network.

29. Mockingbird's total depth is ± 7,480 ft, with coring intervals from 4,980–7,280 ft; Hummingbird will drill to ± 7,660 ft, targeting 5,655–7,460 ft. Both intervals lie well beneath the base of the lowermost underground source of drinking water (USDW)—2,788 ft for Mockingbird and 2,430 ft for Hummingbird.

30. Each proposed Class V test well is strictly "data-only": ExxonMobil will collect cores, fluid samples, injectivity data, and pressure data, and no disposal of waste via injection will occur at the Class V stage pursuant to the LDENR permits issued to construct these wells. While

ExxonMobil could, at a later date, seek to convert one or both of these wells into a Class VI well, it could only do so if it elects to pursue the project after analyzing test well data, and pursuant to established LDENR processes for such conversion, including the issuance of further LDENR permits. Surface casing will be set below the USDW aquifer and cemented to surface. Production casing will be cemented to surface and instrumented with fiber-optic and pressure sensors for continuous monitoring.

31. On June 23, 2025, the Office of Conservation issued "APPROVAL TO CONSTRUCT" letters for Application Nos. 45462 (Hummingbird IZM 001) and 45314 (Mockingbird IZM 001). These letters are attached as Exhibits B and C to this complaint. Each letter states that ExxonMobil has "met the interim requirements for permitting" of the respective Class V stratigraphic test well and "constitutes a final permit decision regarding the construction of this well." The corresponding permits and basis of permit decision can be found at https://www.dnr.louisiana.gov/page/permits-and-applications. Importantly, the letters state that "[t]he approved work must be completed by June 23, 2026."

32. The approval letters specify four principal conditions: (i) ExxonMobil must give the Office 72 hours' notice before spudding; (ii) casing-pressure tests must be witnessed by the agency; (iii) drilling must be completed within one year of the date on the final approval letter; and (iv) ExxonMobil must file a complete well-history package, including all logs and test results, within 20 days after drilling concludes.

33. State technical reviewers confirmed that no wells lie within the quarter-mile area of review for Hummingbird and that only a single registered water well exists within one mile of Mockingbird. They further verified that ExxonMobil's proposed pads and access routes avoid wetlands, recorded cultural-resource sites, and habitat for federally listed species.

34. In addition to the two Class V wells that LDENR has permitted, ExxonMobil has already filed two Class VI permit applications with the Louisiana Department of Energy and Natural Resources for the Hummingbird storage project southeast of Oberlin.

35. The Class VI process is purposely comprehensive and rigorous. LDENR issued its first draft Class VI permit in April 2025, after fourteen months of review. In connection with its Class VI permit applications, ExxonMobil must submit comprehensive site studies, projections of subsurface CO_2 movement, detailed plans for tracking and leak detection, and evidence of long-term project management. Those submissions will incorporate data gathered from the Class V stratigraphic wells, including core samples, pressure tests, injectivity testing, and formation-water analyses. Following drilling and data submission, LDENR must approve any conversion of the wells to Class VI status before commercial CO_2 may be stored underground.

36. If LDENR approves the Class VI permits, the injection sites will tie into ExxonMobil's Gulf-Coast CO_2 pipeline network, which ExxonMobil will use to provide CO_2 transportation and storage services for existing customers, with existing contracts that collectively account for about 14 million metric tons of CO_2 per year.

37. ExxonMobil projects that full development of the Allen Parish reservoirs could generate over $100 million in lease bonuses, storage fees, and easement payments to local landowners while delivering long-term, permanent CO_2 storage more than a mile underground in sealed Miocene formations the company has determined—and which will be confirmed with information gathered from the test wells—to have the right geology for safe sequestration.

The Allen Parish Police Jury Passes an Injection Ordinance

38. Allen Parish is not a home-rule charter parish. Its governing body—the Allen Parish Police Jury—operates under the police-jury framework of La. Const. art. VI, § 7 (A) and La. R.S. 33:1233–1236. Because the Police Jury is a Dillon's-Rule entity, it holds *only* the powers

that the constitution or a statute expressly confers.

39. At its regular meeting on **May 5, 2025**, the Allen Parish Police Jury (i) held a public hearing on an Injection Well Ordinance, (ii) unanimously voted to seek an expedited Attorney-General opinion on its authority to regulate such wells, and (iii) adopted Ordinance No. 6656 on a motion that was duly seconded and carried.

40. The Police Jury clerk published notice of the ordinance in the official journal (*The Kinder Courier-News*) on **June 12, 2025**.[3] That notice, reproduced verbatim in Exhibit D, certifies that the ordinance was adopted on May 5. It therefore became effective ten (10) days after publication, as provided by La. R.S. 33:1366–67.

41. Because La. R.S. 33:1366 requires publication and La. R.S. 33:1367 gives Ordinance No. 6656 force ten days later, it became law on **June 22, 2025**—ten days after the newspaper publication. No referendum petition was filed within ten days of publication.

Substantive Provisions of Ordinance No. 6656

42. Ordinance No. 6656 inserts a new **"PERMITTING AND REGULATIONS FOR INJECTION WELLS"** into the Allen Parish Code.

43. Section (a) defines an "Injection well" as "any and all injection wells as defined by the United States Environmental Protection Agency Underground Injection Control ("UIC") well classes," and expressly lists Classes I through VI. The definition incorporates EPA's six UIC well classes and the concept of an "Underground Source of Drinking Water (USDW)." It also defines "Plume" as "the physical extent of the contaminant underground." *Id*.

44. Section (b) states that "*All Injection wells [Classes I-VI] shall be permitted*. A

[3] Available publicly at https://allenparishtoday.com/2025/06/12/kinder-courier-public-notices-june-12-2025/.

permit to drill an injection well within Allen Parish may be issued only if all of the following conditions are met." *Id*. Notably, Section (b) makes clear that even if the many unworkable conditions are met, the Parish still might not issue a permit, nor is it under no specific timeline to do so.

45. Since the Hummingbird and Mockingbird test wells are both permitted as Class V wells, they are subject to Ordinance No. 6656—regardless of whether any injection takes place. However, as discussed above, ExxonMobil anticipates the need to conduct injectivity testing to support its Class VI application. Neither the Hummingbird nor Mockingbird test wells can be used to inject CO_2 for storage without further regulatory approval from LDENR.

46. Ordinance No. 6656 then lists items that every permit application must contain, including:

a. detailed geologic reports, maps, drawings, blueprints, and diagrams showing, among other things, all underground strata through which any injection well is intended to be drilled and all strata at least one thousand (1,000) feet below the intended bottom depth of the well; and any geologic faults within a five-mile radius of the proposed injection well; and all underground streams or aquifer, including fresh and salt water streams and aquifers;

b. a map or site plan must be submitted to police jury engineering department and filed in the clerk of court office. The map or site plan must display all parcels of property within the projected and actual/projected plume location, including all Class V wells used for monitoring of injection wells and all closed and active oil wells in the vicinity of the plume. The mapped area must display and extend a minimum of three (3) miles beyond the plume. The projected and actual plume must be displayed and distinguished on the map. The map shall be updated every five (5) years. All water wells and water systems must be clearly displayed on the map. Pipelines locations that supply injection wells shall also be shown.

c. The initial application for a permit shall be accompanied by a non-refundable fee, paid by certified check, in the amount of five thousand dollars ($5,000.00) plus all other permit fees required by the building code and any other parish ordinance to begin review.

d. An additional fee shall be may assessed upon completion of the permit review process in order to cover costs for advanced scientific or geologic review and any review or analysis required to be performed beyond the Police Jury's capability to perform in-

house. Additional fees shall be calculated based on any and all actual documentable costs expended during the review process plus a 10% parish permit handling and maintenance fee. This additional fee shall paid by cashier's check made payable to the Allen Parish Police Jury prior to the issuance of the final permit.

e. the type and volume of material to be injected;

f. compliance with the parish heavy-hauler and utility-permitting ordinances and submission of two separate truck-routing maps;

g. engineering drawings of all storage, treatment and disposal facilities; and

h. copies of every filing made to any other local, state or federal agency.

Id.

47. Moreover, the "Specific Requirements to Be Followed and Demonstrated" portion of includes:

a. A prohibition on any injection well or pipeline within two miles of any house, mobile home, apartment, condominium, school, commercial structure, or other structure used as a residence or business.

b. The requirement for quarterly testing of all water wells and water systems located within five (5) miles of the projected plume;

c. The requirement that ExxonMobil already have (at this preliminary test well permitting stage, lease agreements signed by all property owners where the projected and planned plume is being stored below ground and filed at the Clerk of Court's office;

d. The requirement that ExxonMobil install, own and operate a community alarm system, tested monthly,

e. A prohibition on drilling where an abandoned or active oil well lies inside the plume unless it is first plugged;

f. A requirement for a federally secured bond sufficient to cover plugging and mitigation (which amount is unspecified and uncapped); and

g. A requirement that the operator odorize the CO_2 stream so leaks can be detected by smell (which is not yet technically feasible).

Id.

48. Ordinance No. 6656 sets no timeline for the Police Jury to approve or act once those prerequisites are met, leaving applicants subject to potential indefinite delay and, in ExxonMobil's

case, at risk of not meeting the LDENR deadline to construct either the Hummingbird or Mockingbird Class V test well. A public hearing must be held within sixty days of the application; notice must run twice in the official journal at least thirty days beforehand, be posted at parish offices two weeks in advance, and make the complete application publicly available thirty days before the hearing (in each case, despite the fact that LDENR already held public hearings for each Class V as part of its permitting process).[4]

49. Any person may comment orally or in writing, and written comments remain open for five working days after the hearing. After the comment window closes, Ordinance No. 6656 is silent on when a decision shall be rendered, giving the Police Jury unlimited time to grant, deny, or ignore the permit request.

50. If a permit is approved, the parish administrator may condition it on:

a. the Police Jury having access to the site and facility at all times

b. The posting of a bond in an undetermined amount greater than five hundred thousand dollars ($500,000), to be determined in each case by the Police Jury, which amount is to be "sufficient to cover the costs of any personal injury or property damage, including environmental damage, that may occur as a result of the activities at the facility."; and

c. "any other conditions" the Police Jury deems appropriate. *Id*.

51. Lastly, the Administration section of Ordinance No. 6656 authorizes the parish administrator to promulgate rules (subject to Jury approval) and imposes both civil liability and a criminal misdemeanor punishable by a fine of up to $5,000 (which exceeds the statutory maximum of $500 per day of parish ordinances) or 30 days in jail for each day of violation.

52. These provisions demonstrate how Ordinance No. 6656 creates an unworkable

[4] In fact, LDENR held public hearings on these two Class V permit applications on April 30, 2025 in Allen Parish. A copy of the LDENR public notice can be found at: https://www.dnr.louisiana.gov/assets/OC/ClassVI/Public_Hearings/Public_Notice_Exxon_Mockingbird.pdf.

framework by attempting to regulate an activity already comprehensively governed by the State. In doing so, it duplicates, exceeds, and conflicts with existing state and federal underground injection programs—exposing operators and landowners to indefinite fees, bond requirements, and potential criminal penalties.

53. As explained more fully in Counts I and II below, state law provides core limits on the Allen Parish Police Jury's regulatory power—limits that Ordinance No. 6656 ignores completely:

SOURCE OF LAW	**WHAT IT ALLOWS / FORBIDS**	**HOW ORDINANCE NO. 6656 OVERSTEPS**
La. R.S. 33:1236 (enumerated-powers statute)	Lists the *only* subjects a police jury may regulate (roads, drainage, garbage collection, etc.): Nothing in the list mentions underground-injection wells.	Creates an entire permitting program for UIC/CCS wells, sets technical operating conditions (setbacks, monitoring, plume mapping), and levies a $500,000 bond—subjects not enumerated in § 1236.
La. R.S. 33:1236.6(B) (industrial-waste carve-out)	Allows police juries regulate disposal of "industrial waste" ***unless*** the waste is generated by industries "regulated by Chapter 1 [Office of Conservation] or Chapter 11 [LDEQ] of Title 30."	Targets exactly the fluids and activities that the carve-out removes from parish control, thus acting ultra vires.
La. R.S. 33:1242 (enforcement limit)	A police jury may "enforce ordinances which it is **authorized to pass**"—and no others.	Tries to enforce permit denials, operating bans, and fines in a field where it has no underlying authority, violating § 1242's prerequisite.
La. R.S. 33:1243(A)(1) (penalty cap)	Caps penalties at **$500 per offense** and **30 days** in parish jail unless another statute says otherwise.	Sets misdemeanor fines of **$5,000 per offense**—ten times the statutory maximum.
***Dillon's* Rule / jurisprudence**[5]	Local governments possess only powers "expressly" or	Every novel requirement (setbacks, plume maps, $500k bond, $5k fines)

[5] *See Air Prods. Blue Energy, LLC v. Livingston Par. Gov't*, 2022 U.S. Dist. LEXIS 231839, at *14-17 (M.D. La. Dec. 26, 2022) (concluding that "[t]he pervasive extent of this law strongly suggests that the Legislature intended to preempt the field of underground injection control in its

	"necessarily" granted; any doubt is resolved against the parish.	lacks an express state grant, so all are void under Dillon's Rule.
La. Const. art. VI, § 9(B) (State pre-emption of police power)	Prevents local governments from exercising police power "in a manner inconsistent with the general law."	Conflicts with the State's comprehensive UIC rules (La. Admin. Code tit. 43, Parts XVII & XIX) and permit framework under La. R.S. 30:4.1, triggering constitutional pre-emption.
La. R.S. 30:4.1 & UIC rules (field occupation)	Gives the Commissioner of Conservation exclusive authority over drilling, casing, monitoring, plugging, and permitting of all disposal wells, including Class V and VI wells.	Adds burdens the state never imposes: a separate parish permit + fees, plume-acre tax, truck-routing clearances, a two-mile setback, quarterly testing of all wells within five miles, 100 % surface-owner consent, community sirens and fire-training, an extra open-ended bond, and CO_2 odorization—none of which appears in La. R.S. 30:4.1 or LAC 43:XVII/XIX.
42 U.S.C. § 300h et. seq. (Federal SDWA framework) **/ U.S. Const. art. VI, cl. 2.** (Supremacy Clause)	Establishes a federal UIC program over which the EPA has granted Louisiana primacy & bars state laws obstructing federal powers.	Stands as an obstacle to the accomplishment of federal objectives by imposing the above-stated additional/duplicative requirements.

Any one of these voids Ordinance No. 6656. Accordingly, it is *ultra vires* and preempted by state law. ExxonMobil is entitled to declaratory and injunctive relief.

COUNT I – Declaratory Judgment that Ordinance No. 6656 is *Ultra Vires* and Unenforceable

54. Allen Parish is a *Dillon's*-Rule police-jury parish. Having no home-rule charter, the Allen Parish Police Jury possesses only those powers that the Louisiana Constitution or statutes

entirety" and "the State of Louisiana has circumscribed the [Livingston Parish] Moratorium by undertaking to allow UIC wells through its UIC program.");

ABL Mgmt., Inc. v. Bd. of Sup'rs of S. Univ., 00-798, pp. 6-7 (La. 11/28/00), 773 So. 2d 131, 135 ("The Legislature is presumed to have enacted each statute with deliberation and with full knowledge of all existing laws on the same subject."); and

La. Atty. Gen. Op. 85-495 (July 24, 1985) (Noting that parish authority to regulate "does not include waste regulated exclusively by the Commissioner of Conservation or by the Department of Environmental Quality."

expressly grant.

55. Neither the Constitution nor La. R.S. 33:1236 empowers a police jury to regulate underground-injection wells. La. R.S. 33:1236 sets out an exhaustive catalogue of police-jury powers; regulating CCS or any class of underground-injection well is absent from that list. Under Dillon's Rule, Allen Parish therefore has no legislative jurisdiction over CCS operations.

56. Moreover, La. R.S. 33:1236.6(B) expressly withholds local authority over "any industrial waste produced by industries or industrial processes regulated by [the Commissioner of Conservation] or [the Department of Environmental Quality]." The Commissioner of Conservation exercises that exclusive authority through Chapter 1 of Title 30 (see *e.g.*, La. R.S. 30:4.1 on UIC wells), and DEQ exercises its authority through the Louisiana Environmental Quality Act (now Subtitle II, Chapter 1 of Title 30). Waste from UIC or CO_2-sequestration wells thus lies entirely outside parish control under § 1236.6(B).6.

57. Further, La. R.S. 33:1242 specifically lists ordinances that Louisiana police juries are authorized to pass. Because §§ 1236 and 1236.6 confer no ability to regulate injection wells, § 1242 bars the Allen Parish Police Jury from enforcing Ordinance No. 6656 against UIC-well operations.

58. State law also caps parish-ordinance penalties at a $500 fine and thirty days in jail unless a special statute provides otherwise (La. R.S. 33:1243(A)(1)). Ordinance No. 6656, by contrast, makes each violation a misdemeanor punishable by up to a $5,000 fine—*per offense*. Because Ordinance No. 6656 exceeds the statutory ceiling, it is invalid on this ground as well.

59. Ordinance No. 6656 creates a parish-level permitting regime that (1) demands a separate parish permit and fee, (2) mandates, *inter alia*, two-mile residential setbacks, five-mile quarterly water-testing obligations, and plume-mapping mandates, and (3) conditions approval on

public hearings, occupational-license taxes, and a $500,000 bond—none of which state law requires or authorizes. These requirements particular to Allen Parish run afoul of the Legislature's stated policy "to provide for a coordinated statewide program related to the storage of carbon dioxide." La. R.S. 30:1102.

60. By conditioning the drilling of Class V stratigraphic wells on parish approval and imposing obligations that conflict with or exceed those set by the Office of Conservation, Ordinance No. 6656 intrudes on a field the Legislature has reserved to the State.

61. Accordingly, Ordinance No. 6656 is **null and void *ab initio*** under insofar as it seeks to regulate Class V injection wells.

62. Moreover, the Parish's failure to make available the final version of Ordinance No. 6656 deprives regulated entities of fair notice and renders enforcement arbitrary. ExxonMobil is left to interpret and comply with a draft version that may or may not reflect the enacted law. This lack of transparency violates fundamental principles of due process and underscores Ordinance No. 6656's unenforceability, further compounding its legal infirmities and the need for judicial intervention.

63. In short, Ordinance No. 6656 is *ultra vires* and unenforceable on multiple, independent grounds:

a. it invents regulatory powers that La. R.S. 33:1236 never granted;

b. it targets "industrial waste" that § 1236.6(B) expressly reserves to state regulators under Chapters 1 and 11 of Title 30;

c. it imposes $5,000-per-offense fines that exceed the $500 ceiling in § 1243; and

d. the Parish's failure to make available the final version of it deprives regulated entities of fair notice and violates due process.

64. ExxonMobil therefore seeks a declaratory judgment under 28 U.S.C. §§ 2201–02 declaring Ordinance No. 6656 invalid and unenforceable.

COUNT II – Declaratory Judgment that the Allen Parish Ordinance is Preempted by State Law

65. Article XI, § 1 of the Louisiana Constitution assigns the Legislature exclusive authority to enact laws governing the State's natural resources. Using that power, the Legislature delegated to LDENR oversight of geologic carbon-dioxide sequestration (La. R.S. 30:1102) and expressly empowered the Commissioner to regulate CO_2 transport connected to such sequestration. See La. R.S. 30:1107(B). Louisiana has therefore developed a detailed statutory and regulatory scheme covering every facet of CO_2 transportation and storage. *See* La. R.S. 30:1102(A)(4) (stating that "the public policy of Louisiana and the purpose of this Chapter [is] to provide for a coordinated statewide program" to regulate CO_2 storage and injection).

66. The Legislature has likewise fully occupied the field of injection-well regulation. Under La. R.S. 30:4.1(B), the Assistant Secretary of the Office of Conservation holds exclusive authority to adopt rules on drilling, casing, cementing, disposal intervals, monitoring, plugging, and permitting of disposal wells—including Class V stratigraphic wells. Acting pursuant to that mandate, the Office has issued comprehensive regulations—approved by EPA—codified at La. Admin. Code tit. 43, parts XVII and XIX.

67. Because that state program fully regulates siting, construction, monitoring, bonding, and closure of Class V wells, no parish may impose *additional* or *conflicting* requirements. See La. Const. art. VI, § 9(B) ("Police power not abridged").

68. The Safe Drinking Water Act ("SDWA"), 42 U.S.C. § 300f et seq., directs the EPA to establish a UIC program that protects underground sources of drinking water. *See* 42 U.S.C. § 300h.

69. Under 42 U.S.C. § 300h-1(b)(1), EPA may delegate primary enforcement responsibility (primacy) to a state whose rules are at least as protective as federal standards. By

Federal Register notice dated April 23 1982, EPA granted Louisiana primacy over UIC Classes I–V.[6] Once primacy is granted, the State program shall operate in lieu of the Federal program for those well classes. *See* 42 U.S.C. § 300h-1(c).

70. The Louisiana Office of Conservation has promulgated comprehensive regulations—codified at La. Admin. Code tit. 43, XVII & XIX—governing the drilling, casing, cementing, monitoring, bonding, and closure of Class V stratigraphic test wells. Because EPA approved those rules, they constitute the operative federal program within Louisiana.

71. Under 42 U.S.C. § 300h-2(c) and the Supremacy Clause (U.S. Const. art. VI, cl. 2), any state or local measure that interferes with the accomplishment and execution of the full purposes and objectives of Congress is preempted. Congress's objective in authorizing primacy is to ensure that a single, coherent set of UIC standards governs each state.

72. Recently, the Middle District of Louisiana held that Livingston Parish's attempt to place a moratorium on seismic activity in connection with potential carbon sequestration projects was preempted by state law regulating carbon sequestration activities. *See Air Products Blue Energy, LLC v. Livingston Parish Gov't*, No. 3:22-cv-809; 2022 U.S. Dist. LEXIS 231839 (M.D. La. Dec. 26, 2022) (finding state preemption of local laws that "encroach[] on the field of underground injection control and attempts to regulate the drilling of Class V test wells and other wells used for long term storage of carbon dioxide.").

73. As noted above, Ordinance No. 6656 layers extra-statutory conditions—including a separate parish permit and fee, two-mile residential setbacks, five-mile quarterly water-testing, plume-mapping, an acreage-based occupational tax, a $500,000 bond, and public-hearing

[6] Louisiana also received primacy as to Class VI wells via Federal Register notice on January 5, 2024, becoming effective on February 4, 2024. *See generally:* https://www.dnr.louisiana.gov/page/primacy.

prerequisites—onto the federally approved, state administered program, effectively blocking construction of a permitted Class V stratigraphic well until parish approval is granted.

74. These duplicative and more burdensome requirements frustrate the SDWA's uniform permitting framework, delay state-approved Class V and VI wells, and undermine the predictability that Congress ensured by delegating primacy. Ordinance No. 6656 therefore stands as an obstacle to the accomplishment of federal objectives and is pre-empted.

75. Pursuant to 28 U.S.C. §§ 2201–02, ExxonMobil seeks a judgment declaring that the Allen Parish Injection-Well Ordinance is pre-empted and invalid under La. Const. art. VI, § 9(B), the SDWA, and Supremacy Clause insofar as it imposes any local permitting, fee, setback, testing, bonding, or other additional requirements on Class V injection wells.

76. ExxonMobil reserves any additional federal or state preemption theories—including conflict and field pre-emption—should Defendants attempt to enforce Ordinance No. 6656 against Class VI wells or related infrastructure.

COUNT III – Injunctive Relief

77. Because Ordinance No. 6656 is pre-empted and invalid, ExxonMobil is entitled to injunctive relief—preliminary and permanent—barring enforcement of Ordinance No. 6656.

78. All four factors required for injunctive relief are satisfied.

79. **First—**although irreparable injury need not be shown where, as here, the challenged conduct is unlawful—failure to enjoin enforcement will forfeit, not merely delay, ExxonMobil's rights. Because the Class V approvals lapse unless drilling is completed within one year of the final permit's issuance, any open-ended delay imposed by Allen Parish would, in practical effect, operate as a de facto moratorium—running out the regulatory clock, stripping ExxonMobil of its state authorizations, derailing project-financing milestones, causing a loss of good will and damage to business relationships, and preventing the geologic data collection critical

to the pending Class VI applications. None of these injuries can be remedied by money damages.

80. **Second,** for the reasons set out above, ExxonMobil is overwhelmingly likely to prevail on its claims that Ordinance No. 6656 is pre-empted by La. R.S. 30:4.1 and the SDWA/UIC program *and* that the Ordinance No. 6656 is *ultra vires* and void.

81. **Third and Fourth,** enjoining an invalid ordinance imposes no cognizable harm on Defendants and serves the public interest by vindicating the Legislature's chosen regulatory framework and the SDWA's goals.

82. ExxonMobil therefore requests that the Court enter (a) an order requiring Defendants to produce the final, enacted version of Ordinance No. 6656 andenjoining any enforcement until such final version is made publicly available; (b) a temporary restraining order (if necessary); (c) a preliminary injunction prohibiting Defendants from enforcing or attempting to enforce Ordinance No. 6656 against ExxonMobil's Class V stratigraphic-well activities; and (d) a permanent injunction prohibiting Defendants from enforcing or attempting to enforce Ordinance No. 6656 against ExxonMobil's Class V stratigraphic-well activities.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff ExxonMobil Low Carbon Solutions Onshore Storage, LLC respectfully requests that the Court:

1. **Declare** that Ordinance No. 6656 is *ultra vires* and preempted by Louisiana law , and is therefore **invalid and unenforceable** insofar as it imposes any local permitting, fee, setback, testing, bonding, or other requirements on Class V injection wells (including stratigraphic test wells) or related activities;
2. **Issue preliminary and permanent injunctive relief** prohibiting Defendants, their officers, agents, employees, and all persons acting in concert with them from enforcing or

attempting to enforce the Allen Parish Injection-Well Ordinance against ExxonMobil's Class V stratigraphic-well activities and associated infrastructure;

3. **Order** the Allen Parish Police Jury to produce the final, enacted version of Ordinance No. 6656 and enjoin any enforcement until such final version is made publicly available and subject to judicial review;
4. **Award ExxonMobil its taxable costs** under 28 U.S.C. § 1920 and any other expenses allowed by law;
5. **Grant such further relief**—legal or equitable—as the Court deems just and proper.

Dated: July 1, 2025

Respectfully submitted,

JONES WALKER LLP

/s/Michael C. Drew

Marjorie J. McKeithen (Bar Roll No. 21767)
Michael C. Drew (Bar Roll No. 30884)
Brett S. Venn (Bar Roll No. 32954)
201 St. Charles Avenue, 49th Floor
New Orleans, Louisiana 70170
Telephone: (504) 582-8420
Facsimile: (504) 589-8420
mmckeithen@joneswalker.com
mdrew@joneswalker.com
bvenn@joneswalker.com

Lauren F. Morrison (Bar Roll No. 40775)
445 North Boulevard, Suite 800
Baton Rouge, Louisiana 70802
Telephone: (225) 248-2415
Facsimile: (225) 248-3115
lmorrison@joneswalker.com

Dakota J. Stephens (La. Bar No. 40522)
3100 North State St., Ste. 300
Jackson, Mississippi 39216
Telephone (601) 949-4900
Facsimile (601) 949-4804
dstephens@joneswalker.com

Counsel for Plaintiff,
ExxonMobil Low Carbon
Solutions Onshore Storage LLC

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF LOUISIANA – LAKE CHARLES DIVISION

EXXONMOBIL LOW CARBON SOLUTIONS ONSHORE STORAGE LLC,

Plaintiff,

V.

ALLEN PARISH POLICE JURY; AND DOUG HEBERT, IN HIS OFFICIAL CAPACITY AS SHERIFF OF ALLEN PARISH, LOUISIANA,

Defendants

CIVIL ACTION NO. _____

JUDGE _____

MAGISTRATE JUDGE _____

DECLARATION OF WILLIAM LANDUYT

In accordance with 28 U.S.C. § 1746, I, William Landuyt, declare under penalty of perjury that the foregoing is true, correct, and within my personal knowledge:

1. I am a person over the age of twenty-one (21), am of sound mind, and am otherwise competent make this declaration. I make this declaration based on my own personal knowledge and information.

2. I am the U.S. Gulf Coast Carbon Capture, and Storage Business Manager of ExxonMobil Low Carbon Solutions Onshore Storage LLC ("ExxonMobil").

3. I have reviewed the allegations set forth in ExxonMobil's Complaint for Declaratory and Injunctive Relief.

4. The factual allegations made therein are correct and true to the best of my information and belief.

FURTHER DECLARANT SAYETH NOT.

Executed on this 1st day of July, 2025.

WILLIAM LANDUYT

ARTICLE XXXX - PERMITTING AND REGULATIONS FOR INJECTION WELLS

Sec. XX-XXXX. Injection wells.

(a) *Definitions.* [The following words, terms and phrases, when used in this article, shall have the meaning ascribed to them in this section, except where the context clearly indicates a different meaning]:

Injection well – Any and all injection wells as defined by the United States Environmental Protection Agency Underground Injection Control Well Classes, including, but not limited to:

1. Class I wells are used to inject hazardous and non-hazardous wastes into deep, isolated rock formations.
2. Class II wells are used exclusively to inject fluids associated with oil and natural gas production.
3. Class III wells are used to inject fluids to dissolve and extract minerals.
4. Class IV wells are shallow wells used to inject hazardous or radioactive wastes into or above a geologic formation that contains a USDW.
5. Class V wells are used to inject non-hazardous fluids underground. Most Class V wells are used to dispose of wastes into or above underground sources of drinking water.
6. Class VI wells are wells used for injection of carbon dioxide (CO2) into underground subsurface rock formations for long-term storage, or geologic sequestration.

Plume means the physical extent of the contaminant underground.

(b) *[Permitting procedures and regulations].* This article applies to all injection wells drilled and operated on private land within Allen Parish. This Article also applies to existing wells that are converted into injection wells.

All Injection wells shall be permitted. A permit to drill an injection well within Allen Parish may be issued only if all the following conditions are met.

SECTION XX-XX - PERMIT APPLICATIONS SHALL INCLUDE:

1. Names, addresses, residences and telephone numbers of owners, partners or shareholders, whichever is applicable, of the applicant.
2. Detailed site survey prepared by a Louisiana registered surveyor, civil engineer or architect showing the location of the proposed facility.
3. Type or types of materials proposed to be injected and volume of material proposed to be injected.
4. Method of storage, treatment, transferal or disposal intended to be used, including any waste treatment to be undertaken.
5. Detailed engineering reports, diagrams, blueprints and drawings showing design of storage, treatment, transfer or disposal facility.
6. Detailed geologic reports, maps, drawings, blueprints and diagrams showing, among other things, all underground strata through which any injection well is intended to be drilled and all strata at least one thousand (1,000) feet below the intended bottom depth of the well; and any geologic faults within a five-mile radius of the proposed injection well; and all underground streams or aquifer, including fresh and salt water streams and aquifers.
7. All permit applications and accompanying data submitted to any other local, state or federal agency having jurisdiction over the proposed facility and any permit application submitted in connection therewith.
8. All other information required pursuant to the parish building code or other local ordinances.

9. A map or site plan must be submitted to police jury engineering department and filed in the clerk of court office. The map or site plan must display all parcels of property within the projected and actual/projected plume location, including all Class V wells used for monitoring of injection wells and all closed and active oil wells in the vicinity of the plume. The mapped area must display and extend a minimum of three (3) miles beyond the plume. The projected and actual plume must be displayed and distinguished on the map. The map shall be updated every five (5) years. All water wells and water systems must be clearly displayed on the map. Pipelines locations that supply injection wells shall also be shown.

10. All owners and operators of injection wells and associated pipelines shall be required to comply with the heavy hauler and utility permitting ordinances in acted within the parish. The operator of the injection well and pipeline supply system shall produce two maps of proposed truck routing. One map shall show truck routing during pipeline and well construction. The second shall show routing during pipeline and well operation. Maps shall be submitted to the Allen Parish Police Jury engineering department for review and approval. Any proposed pipeline crossings or parish right-of-way use shall be in compliance with Ordinance No. 6415 – APPJ Utility Permitting Process.

11. The initial application for a permit shall be accompanied by a non-refundable fee, paid by certified check, in the amount of five thousand dollars ($5,000.00) plus all other permit fees required by the building code and any other parish ordinance to begin review.

    a. An additional fee shall be may assessed upon completion of the permit review process in order to cover costs for advanced scientific or geologic review and any review or analysis required to be performed beyond the Police Jury's capability to perform in-house. Additional fees shall be calculated based on any and all actual documentable costs expended during the review process plus a 10% parish permit handling and maintenance fee. This additional fee shall paid by cashier's check made payable to the Allen Parish Police Jury prior to the issuance of the final permit.

12. The owner and operator of the injection well and corresponding plume shall obtain a separate occupational license for each injection well/plume location and shall register with the sales tax collection office as required by parish ordinance.

    a. The cost of each occupational license shall be calculated at rate of $5.00/acre/year based on the horizontal surface area occupied by the final anticipated waste plume size below ground.

SECTION XX-XX - SPECIFIC REQUIREMENTS TO BE FOLLOWED AND DEMONSTRATED IN THE PERMIT APPLICATION

1. Injection wells and corresponding pipelines are prohibited within a two (2) mile radius of any house, mobile home, apartment, condominium, school, commercial structure, or other structure used as a residence or business.

2. Injection wells shall comply with any zoning or land use requirements in effect at the time of the permit application.

2. Any water wells and water systems located within five (5) miles of the projected plume must be tested and analyzed for any contaminants quarterly at the expense of the owner and/or operator of the injection wells. Any contaminant detection shall be report immediately to the water system and the Police Jury.

3. A lease agreement must be signed by all property owners where the projected and planned plume is being stored below ground and filed at the Clerk of Court's office.

4. A community alarm and notification system shall be required and activated in the event and incident occurs and an evacuation is needed. The alarm and notification system must be tested monthly. The alarm and notification system shall have the ability to notify all residents extending three (3) miles beyond the projected plume. The community alarm notification system plans shall be submitted to and

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approved by the Allen Parish Administration, Allen Parish Sheriff's Office 911 Communications Director, and Allen Parish Office of Homeland Security Director.

5. The owner and/or operator must have an emergency response plan capable of handling any emergency due to any type of injection well failure or any type of injection material release. The plan shall include local government and state agency state responders, including local fire departments. Local fire departments must be supplied with all necessary equipment and training needed to respond to the incident. The equipment, training and staffing shall be supplied by and at the expense of the owner and/or operator of the injection well.
6. No injection well may be drilled in an area where an improperly abandoned or active oil well is within the projected and/or actual plume unless a plan has been provided that demonstrates the proper plug and abandonment of any existing wells.
7. The injection well project shall have a federally secured security bond in place for the duration of the project. This bond shall be in place to cover the expense of capping, decommissions or closing of any and all wells as well as any potential mitigation costs.
8. Incorporation of an odorizing agent with a distinct, pungent smell into the gas stream prior to it entering the parish boundary to allow for physical detection of any potential leaks.
9. All state and federal laws must be met to protect sovereign public.

SECTION XX-XX - PUBLIC HEARING REQUIREMENTS

1. No injection well permits shall be issued until a public hearing is held thereon. The purpose of the public hearing shall be to gather facts, opinions and other input regarding the permit application or renewal thereof.
2. A public hearing shall be called by the applicant within sixty (60) days of submission of the permit application. Before the public hearing is held, the applicant shall comply with the following requirements:
   a. Advertising of the public hearing shall be made by publishing two (2) times in the official journal of Allen Parish an advertisement at least 30 days prior to the date of the public hearing, which advertisement shall include the following "Public Hearing for Injection Well Permit".
   b. The advertisement shall also state the date, time and place of the hearing and the fact that any interested person may appear and be heard. A Certified copy of the notice shall be submitted to the police jury.
   c. Notice of the public hearing shall be posted at least two (2) weeks prior to the hearing in a prominent place at the Allen Parish Police Jury Building and any other location deemed pertinent by the police jury.
   d. Copies of the application and all attachments shall be made available to the public at the office of the Allen Parish Police Jury at least thirty (30) days prior to the hearing.
3. Any interested person shall have the right to comment verbally or in writing at the public hearing. Written comments will be accepted and entered into the public hearing record for five (5) working days after the hearing.

SECTION XX-XX - PERMIT ISSUANCE, CONDITIONS

1. Upon compliance by the applicant with all requirements of this chapter, the parish building and fire codes and zoning ordinances, and all state and federal laws, the parish administrator, or his designee, acting under the authority of the police jury, may issue a special permit for proposed injection well.
2. The police jury may require, as conditions for the issuance and maintenance of the permit, that the applicant:

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(1) Agree in writing that the police jury shall have access to the site and facility at all times to monitor the activities at the site and facility. The volume of materials being transported for injection shall be measured at the entrance point into the parish. A third-party contractor, at the expense of the applicant, shall measure volumetric flow into the parish and report total volume brought into the parish on a quarterly basis.

(2) Post and maintain, at applicant's expense, a bond sufficient to cover the costs of any personal injury or property damage, including environmental damage, that may occur as a result of the activities at the facility. The amount of the bond shall provide coverage of at least five hundred thousand ($500,000) per person or more if the police jury so requires.

(3) Any other conditions deemed appropriate pursuant to building, fire, zoning, land use, or other codes or to protect the well-being of parish citizens.

3. Prior to the grant of any permit to any facility, the police jury shall consider the history of violations and compliance by the applicant for that facility. In considering the granting or denial of the permit, due consideration shall be given to the violation and compliance history of the applicant and that facility.

SECTION XX-XX - ADMINISTRATION

1. The provisions of this chapter shall be administered by the parish administrator or secretary or their designee. The administrator or secretary may, from time to time, recommend rules and regulations for the administration of this chapter. No rule or regulations recommended hereunder shall become effective until approved by the police jury.

2. Any person who violates the provisions of this chapter or the conditions of any person issued hereunder shall be liable in damages to the police jury, as well as for any personal injury or property damage, including environmental damage, that results from such violation.

3. Any person who intentionally violates the provisions of this chapter, or any permit issued hereunder shall, in addition to any other penalty or remedy provided hereunder or by any law, be guilty of a misdemeanor punishable by a fine of five thousand dollars ($5,000.00) or thirty (30) days in the parish jail or both, at the discretion of the court. Each day a violation continues shall constitute a separate offense.

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TYLER PATRICK GRAY
SECRETARY

DUSTIN H. DAVIDSON
DEPUTY SECRETARY

KEITH O. LOVELL
ASSISTANT SECRETARY
COASTAL MANAGEMENT

AMANDA MCCLINTON
ASSISTANT SECRETARY
ENERGY

MARK NORMAND, JR.
UNDERSECRETARY

MANNY ACOSTA
OIL SPILL COORDINATOR

ANDREW B. YOUNG
ASSISTANT SECRETARY
MINERAL RESOURCES

STEVEN M. GIAMBRONE
INTERIM DIRECTOR
CONSERVATION

DEPARTMENT OF ENERGY AND NATURAL RESOURCES

June 23, 2025

Cody Todd, P.E.
ExxonMobil Low Carbon Solutions Onshore (E1041)
22777 Springwoods Village Parkway
Spring, TX 77389

*** * * APPROVAL TO CONSTRUCT * * ***

RE: Stratigraphic Test Well – New Drill
Hummingbird IZM No. 001
Wildcat-SO LA Lafayette Dist. Field
Allen Parish

Application No.45462
Serial No. 976260
API No. 17003880150000

Dear Mr. Todd:

The application by ExxonMobil Low Carbon Solutions Onshore (ExxonMobil) to drill a Class V stratigraphic test well has met the interim requirements for permitting such a well. The issuance of this Permit to Construct constitutes a final permit decision regarding the construction of this well. You are hereby granted approval to perform the work as described in the application. The approved work must be completed by June 23, 2026.

ExxonMobil is to notify the Conservation Enforcement Specialist (CES) for Allen Parish, Sarah Hitchcock at (337) 298-8726, Monday through Friday, or by calling the Injection and Mining Division at (225) 342-5515 at least 72 hours prior to commencement of work. At least 48 hours before the casing test of the long string, contact the CES to schedule a witnessed casing test.

Within twenty (20) days after completion of the work, submit the documentation requested in the enclosed Reporting Requirements to the Injection and Mining Division. PLEASE READ THE ENCLOSURES CAREFULLY.

Please be reminded that for future work on the well, a work permit approval must be obtained from this office before repairing, stimulating, plugging, or otherwise working on this well.

Yours very truly,

Steven M. Giambrone
Office of Conservation

Gavin D. Broussard, Interim Director
Injection and Mining Division

OFFICE OF CONSERVATION

IMD REPORTING REQUIREMENTS >> Class V Stratigraphic Test

Drilling and construction of the well must be completed within one (1) year from the date of the permit approval letter, otherwise, the permit will expire. **Before the expiration of the permit, the operator must notify the Injection and Mining Division (IMD) if a time extension will be requested or if well will not be drilled**.

The approved application describes how the well is to be constructed. Changes in the approved construction, such as well surface location, well depth, or casing setting depths, will require prior written approval from IMD. Failure to obtain prior written approval will be cause for revoking the permit.

At least forty-eight (48) hours prior to commencement of work, the appropriate Conservation Enforcement Specialist (CES) identified below must be contacted. If you are unable to reach the CES, please call the Injection and Mining Division at (225) 342-5515 between the hours of 8:00 a.m. and 4:30 p.m., Monday through Friday.

Application No.	**45462**	Serial No.	**976260**
CES Name	**Sarah Hitchcock**	CES Phone No.	**337-298-8726**

Within twenty (20) days after completion of the well, the completion documents listed below must be filed with IMD for review and approval in compliance with the regulations. Please place the well's Serial Number on the log headings.

- A Class V Well History and Work Résumé Report (Form UIC-42 STRAT TEST) with an original signature from an authorized representative of the operating company and two photocopies of the form (front and back). The Form UIC-42 can be saved, filled-out, and printed by going to www.dnr.louisiana.gov/consforms >> Injection & Mining Division >> Form UIC-42.
- Two (2) copies of the wellbore schematic depicting the completed well.
- Two (2) copies of the electric log used to identify the USDW.
- Two (2) copies of the cement bond log for each respective casing string.
- An original AFFIDAVIT OF TEST OF CASING IN WELL (Form CSG-T) signed by a company representative and witnessed by a third party for each casing. Provide a copy of the properly labeled pressure chart if the Form CSG-T does not have a witnessed signature. Include the well name, well serial number, casing size, test start time and stop time, date of test, and signature of company representative**.** The Form CSG-T can be downloaded from www.dnr.louisiana.gov/consforms >> Injection & Mining Division >> Form CSG-T.

Send the above required documentation together in **ONE PACKAGE** to:

Office of Conservation- 9th Floor
Injection & Mining Division
617 North 3rd Street
Baton Rouge, LA 70802

TYLER PATRICK GRAY
SECRETARY

DUSTIN H. DAVIDSON
DEPUTY SECRETARY

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STEVEN M. GIAMBRONE
INTERIM DIRECTOR
CONSERVATION

DEPARTMENT OF ENERGY AND NATURAL RESOURCES

June 23, 2025

Cody Todd, P.E.
ExxonMobil Low Carbon Solutions Onshore (E1041)
22777 Springwoods Village Parkway
Spring, TX 77389

*** * * APPROVAL TO CONSTRUCT * * ***

RE: Stratigraphic Test Well – New Drill
Mockingbird IZM No. 001
Wildcat-SO LA Lafayette Dist. Field
Allen Parish

Application No.45314
Serial No. 976261
API No. 17003880160000

Dear Mr. Todd:

The application by ExxonMobil Low Carbon Solutions Onshore (ExxonMobil) to drill a Class V stratigraphic test well has met the interim requirements for permitting such a well. The issuance of this Permit to Construct constitutes a final permit decision regarding the construction of this well. You are hereby granted approval to perform the work as described in the application. The approved work must be completed by June 23, 2026.

ExxonMobil is to notify the Conservation Enforcement Specialist (CES) for Allen Parish, Sarah Hitchcock at (337) 298-8726, Monday through Friday, or by calling the Injection and Mining Division at (225) 342-5515 at least 72 hours prior to commencement of work. At least 48 hours before the casing test of the long string, contact the CES to schedule a witnessed casing test.

Within twenty (20) days after completion of the work, submit the documentation requested in the enclosed Reporting Requirements to the Injection and Mining Division. PLEASE READ THE ENCLOSURES CAREFULLY.

Please be reminded that for future work on the well, a work permit approval must be obtained from this office before repairing, stimulating, plugging, or otherwise working on this well.

Yours very truly,

Steven M. Giambrone
Office of Conservation

Gavin D. Broussard, Interim Director
Injection and Mining Division

OFFICE OF CONSERVATION

IMD REPORTING REQUIREMENTS >> Class V Stratigraphic Test

Drilling and construction of the well must be completed within one (1) year from the date of the permit approval letter, otherwise, the permit will expire. **Before the expiration of the permit, the operator must notify the Injection and Mining Division (IMD) if a time extension will be requested or if well will not be drilled**.

The approved application describes how the well is to be constructed. Changes in the approved construction, such as well surface location, well depth, or casing setting depths, will require prior written approval from IMD. Failure to obtain prior written approval will be cause for revoking the permit.

At least forty-eight (48) hours prior to commencement of work, the appropriate Conservation Enforcement Specialist (CES) identified below must be contacted. If you are unable to reach the CES, please call the Injection and Mining Division at (225) 342-5515 between the hours of 8:00 a.m. and 4:30 p.m., Monday through Friday.

Application No.	**45314**	Serial No.	**976261**
CES Name	**Sarah Hitchcock**	CES Phone No.	**337-298-8726**

Within twenty (20) days after completion of the well, the completion documents listed below must be filed with IMD for review and approval in compliance with the regulations. Please place the well's Serial Number on the log headings.

- A Class V Well History and Work Résumé Report (Form UIC-42 STRAT TEST) with an original signature from an authorized representative of the operating company and two photocopies of the form (front and back). The Form UIC-42 can be saved, filled-out, and printed by going to www.dnr.louisiana.gov/consforms >> Injection & Mining Division >> Form UIC-42.
- Two (2) copies of the wellbore schematic depicting the completed well.
- Two (2) copies of the electric log used to identify the USDW.
- Two (2) copies of the cement bond log for each respective casing string.
- An original AFFIDAVIT OF TEST OF CASING IN WELL (Form CSG-T) signed by a company representative and witnessed by a third party for each casing. Provide a copy of the properly labeled pressure chart if the Form CSG-T does not have a witnessed signature. Include the well name, well serial number, casing size, test start time and stop time, date of test, and signature of company representative**.** The Form CSG-T can be downloaded from www.dnr.louisiana.gov/consforms >> Injection & Mining Division >> Form CSG-T.

Send the above required documentation together in **ONE PACKAGE** to:

Office of Conservation- 9th Floor
Injection & Mining Division
617 North 3rd Street
Baton Rouge, LA 70802

PUBLIC NOTICE

PUBLIC NOTICE
LIQUOR LICENSE APPLICATION

JUST CRAWFISH, LLC dba **JUST CRAWFISH** is applying to the Office of Alcohol & Tobacco Control of the State of Louisiana for a permit to sell beverages of **HIGH AND LOW ALCOHOL CONTENT** at retail in the Parish of Allen at the following address:

14578 HIGHWAY 165
KINDER, LA 70648
OWNER:
JAY WHISENANT

Petition of Opposition should be made in writing in accordance with L.R.S. Title 26, Section 85 and 283
(PUBLISH: JUNE 12, 2025)1T
Cost is $135.00

PUBLIC NOTICE
PUPIL APPRAISAL SERVICES
PUBLIC NOTICE

The Allen Parish School Board Pupil Appraisal Services will be destroying inactive records of students who exited special education in Allen Parish during the 2019-2020 school year. If you are interested in obtaining your record, please come by the Pupil Appraisal Office located at 1111 W. Seventh Ave. in Oberlin, LA. The deadline for obtaining these records is July 11, 2025.
(PUBLISH: JUNE 12, 19 & 26, 2025; JULY 3, 2025)4T
Cost is $55.00

PUBLIC NOTICE
ALLEN PARISH
POLICE JURY
NOTICE TO BIDDERS

The Police Jury of Allen, Louisiana, will receive sealed bids up to the hour of 4:00 P.M. July 7, 2025 at the Allen Parish Police Jury Building in Oberlin Louisiana for the official journal.

All bids will be for (1) year period beginning July 1, 2025 and ending June 30, 2026 unless specified otherwise.

Bids will be publicly open and read aloud at 6:00 pm on July 7, 2025.
(PUBLISH: JUNE 12, 19 & 26, 2025)3T
Cost is $55.00

PUBLIC NOTICE
SHERIFF'S SALE
33RD JUDICIAL DISTRICT COURT
Parish of Allen
State of Louisiana
FIRST HORIZON BANK
VS No. C-2025-068
ESTATE AND UNOPENED SUCCESSION OF JAMES CARL KING (JAMES CARL KING, A/K/A JAMES C. KING)

By virtue of a **WRIT OF SEIZURE AND SALE** and to me directed by the Honorable Court aforesaid, I have seized and will offer for sale at public auction, to the last and highest bidder, **WITH** the benefit of appraisement, at the Court House door of this Parish, in the Town of Oberlin, Parish of Allen, on **JUNE 18, 2025** between legal hours, beginning at 10:00 A.M., the following described property, to-wit:

Beginning at a point 62 feet North of the Southwest Corner of Lot two (2) in Block 'N' of McCullin Subdivision to the City of Oakdale, Allen Parish, Louisiana, thence North a distance of 160 feet, thence East a distance of 445 feet, then South a distance of 160 feet, thence West a distance of 445 feet to the point of beginning, subject to that certain right of way or easement given the City of Oakdale, Allen Parish, Louisiana, over the South 30 feet of said tract measuring 30 feet North and South by 445 feet East and West, as per document filed under #222898 and recorded in Book 182 of the records of Allen Parish, Louisiana.

Together with any and all present and future buildings, constructions, component parts, improvements, attachments, appurtenances, fixtures, rights, ways, privileges, advantages, batture and batture rights, servitudes and easements of every type and description, now and/or in the future relating to the property, and any and all items and fixtures attached to and/or forming integral or component parts of the property in accordance with the Louisiana civil Code.

The property or its address is commonly known as 614 North 16th Street, Oakdale, La 71463-2214.

Seized under said Writ.

Terms UPON SUCCESSFULLY BIDDING ON THE PROPERTY, THE WINNING BIDDER MUST IMMEDIATELY PROVIDE THE SHERIFF WITH THE FULL AMOUNT OF THE PURCHASE PRICE PAID BY 12:00 PM (NOON) ON THE DATE OF THE SALE WITH A MONEY ORDER, CASHIER OR CERTIFIED CHECK, PLUS THEIR NAME, ADDRESS, AND PHONE NUMBER

BRANDY HOLLAND
FOR:
DOUGLAS L. HEBERT, III
SHERIFF
Sheriff's Office, Oberlin, La., MAY 7, 2025.

KREIG A. BREAUX
ATTORNEY AT LAW
PO DRAWER 12040
NEW IBERIA, LA 70562-2040
Attorney for plaintiff
(PUBLISH: MAY 15, 2025 & JUNE 12, 2025)2T
Cost is $81.60

PUBLIC NOTICE
ALLEN PARISH TOURIST COMMISSION
MEETING MAY 27, 2025

CALL TO ORDER: A quorum being present, the meeting was called to order by Chairman, Dr. Mike Karam. The prayer was led by Adagria Haddock, and all participated in the Pledge of Allegiance.

ROLL CALL: Those present for the meeting were: Dr. Mike Karam, Keith Guillory, Odessa House, Wilma Hargrove, Stevie Barnett and Angela Hayward. Martha Turner was absent.

APPROVAL OF APRIL 29, 2025 MINUTES: A motion was made by Keith Guillory and seconded by Wilma Hargrove, to accept the minutes as written. A unanimous vote was had.

DISCUSSION OF RICOH CONTRACT: A discussion was had about the RICOH copier contract ending, a motion was made by Keith Guillory, and seconded by Angela Hayward to change to copier model 3510 with new contract. A unanimous vote was had.

DISCUSSION TO CREATE ONLINE ACCOUNTS FOR CLECO PAYMENTS: After discussion, a motion was made by Keith Guillory, and seconded by Wilma Hargrove giving Adagria Haddock and/or Valorie Trahan, permission to make CLECO payments online going forward. A unanimous vote was had.

DISCUSSION TO RESCIND PARTICIPATION VOTE IN NO MAN'S LAND: After discussion, a motion was made by Keith Guillory, and seconded by Stevie Barnett to rescind previous vote and once again participate in the No Man's Land agreement by letter from Chairman Dr. Mike Karam to the No Man's Land committee. A unanimous vote was had.

APPROVAL OF DIRECTOR'S REPORT: A motion was made by Angela Hayward and seconded by Keith Guillory, to approve the Director's Report. A unanimous vote was had.

APPROVAL OF FINANCE REPORT: A motion was made by Keith Guillory and seconded by Angela Hayward, to accept the Finance Report as written. A unanimous vote was had.

ADJOURNMENT: There being no more business to come before the Board, a motion was made by Keith Guillory and was seconded by Wilma Hargrove, to adjourn the meeting. A unanimous vote was had.
(PUBLISH: JUNE 12, 2025)1T
Cost is $50.00

PUBLIC NOTICE
ALLEN PARISH
POLICE JURY
MEETING MAY 5, 2025

The Allen Parish Police Jury met in regular session at the Police Jury Administration Building, Oberlin, Louisiana, May 5, 2025 at the hour of 6:00pm.

Present: Heath Ardoin, Allen Courville, Roland Hollins, Ruffin George, Adam Hussong, Joe Perkins and Chad Sanders Absent: Tony Hebert

Motion seconded and carried to go into session.

The Lord's Prayer was said followed by the Pledge of Allegiance.

Held a public hearing to discuss an ordinance regulating the use of Carpenter's Bridge Right of Way. Recognized Larry Singleton to speak.

Motion seconded and carried to remove from agenda the consideration to adopt an ordinance regulating the use of Carpenter's Bridge Right of Way.

Held a public hearing to discuss an Injection Well Ordinance. Recognized Keith Guillory to speak.

Motion seconded and carried to approve to add item to the agenda:

1. Request an expedited Attorney General's opinion regarding Injection Well Ordinance.

Motion seconded and carried to request an expedited Attorney General's opinion regarding Injection Well Ordinance.

Motion seconded and carried to approve an Injection Well Ordinance.

Motion and seconded to approve minutes of the meetings held April 7, 2025.

The CO2 Committee had the following recommendations:

1) Discuss a resolution concerning the class V well permit process.

2) Recognize Coushatta Tribe Youth to discuss CO2 injection on tribal lands.

3) Consider a resolution of support for Coushatta Tribe Youth.

Motion seconded and carried to approve to add item to the CO2 agenda:

1. Resolution of support

Motion seconded and carried to approve a resolution of support for Coushatta Tribe Youth.

4) Discuss signing a letter of support to send to Clay Higgens.

Motion seconded and carried to approve to add item to the CO2 agenda:

1. Letter of Support

Motion seconded by and carried to approve to send letter of support to Clay Higgins.

Motion seconded and carried to accept the recommendations of the CO2 Committee.

The Finance Committee had the following recommendations:

1) Approve to pay Kinder Glass Repair $9,040.00 to replace glass on 1st and 2nd story windows at the Old Jail in order to comply with building insurance requirements.

Motion seconded and carried to accept the recommendations of the Finance Committee.

The Road Committee had the following recommendations:

1) Approve a JSA with the City of Oakdale for grass cutting, pothole patching and trash pickup for the month of May, 2025.

2) Authorize a JSA with the City of Oakdale for ditch clearing work on Beaver Creek in Oakdale between 16th Street and the Federal Prison.

Motion seconded and carried to accept the recommendations of the Road Committee.

Motion seconded and carried for the purchasing agent to take necessary action for fuel, materials, and supplies for the month.

Motion seconded by and carried to approve to advertise for 6-month bids and for the legal journal.

Motion seconded and carried to award the Beaver Creek Drainage Improvements Project to Crawcon with a bid in the amount of $4000.00 for the North and $31,500.00 for the South for a total of $35,500.00.

Recognize Mr. Byron Buller to discuss taxing CO2 pipelines.

Motion seconded by and carried to approve to add item to the agenda:

1. Committee for pipeline.

Motion seconded by and carried to approve to form committee for pipeline.

Motion seconded and carried to authorize the Police Jury President to sign all necessary access and agreements and servitudes in connection with the Beaver Creek Drainage Improvements Project.

Motion seconded and carried to approve to adopt a resolution for compliance of Environmental Protection Agency's {Memorandum of Agreement} Safe Drinking Water Act (SDWA) and the State of Louisiana, Department of Natural Resources (LDNR).

Motion seconded and carried to approve to adopt a resolution adopting the OCD Section 3 plan for the RCIP Program.

Motion seconded and carried to approve to adopt a resolution naming the Parish Administrator as the RCIP Section 3 and Section 504 Coordinator.

Call for a public hearing to update the existing Flood Damage Prevention Ordinance.

Recognized Mrs. Sonnier to present the monthly inmate report. Expenses for the month of April 2025 totaled $13,503.80. We are under budget $9896.20 for the year. Currently there are 125 Parish and 1 DOC inmate.

Recognized Mr. Joel Johnson for the report on the airport.

Motion seconded and carried to approve to add item to the agenda:

1. To discuss adopting a resolution to condemn LDENR.

Motion seconded and carried to approve to adopt a resolution condemning LDENR.

Motion seconded and carried to adjourn the meeting.

Tony Hebert, President
Allen Parish Police Jury
ATTEST:
Colleen Sonnier
Secretary-Treasurer
(PUBLISH: JUNE 12, 2025)1T
Cost is $165.00

PUBLIC NOTICE
ALLEN PARISH
SHERIFF
REQUEST FOR BID

Allen Parish Sheriff's Office is soliciting bid proposals from qualified suppliers for one minivan (or functional equivalent) model year 2023 or newer.

In order to be considered, bid proposals must be received by 10:00 a.m. on Tuesday, July 1, 2025.

To obtain proposal specifications or for questions concerning this bid and its requirements please contact Pam Pender, Allen Parish Sheriff's Office at 337-639-4353, Extension 347, or email ppender@allenparishso.com.

Responses may be delivered as follows: Mail to Post Office Box 278, Oberlin, LA 70655; email ppender@allenparishso.com or hand delivered to 7340 Highway 26, Oberlin, LA 70655.

All bid proposals should be sealed and identified on the outside: **Response to Request for Bid Proposal – Fleet 2025/001**.

Allen Parish Sheriff's Office reserves the right to reject any and all bid proposals, to waive information and award as it might elect.
(PUBLISH: JUNE 12 & 19, 2025)2T
Cost is $65.00

PUBLIC NOTICE
ALLEN PARISH
FIRE DISTRICT NO. 5
MEETING MAY 14, 2025

The Allen Parish Fire District #5 held its monthly board of directors meeting at 215 W 5th Ave, Oberlin, LA 70648 on May 14th 2025 at 5:00 PM.

Members Present: Scott Manuel, Rhonda Mahaffey, and Dolly Tyler.

The meeting was called to order at 5:13 PM.

The Pledge and Prayer were said.

Dolly Tyler made a motion to accept the minutes of the last meeting as read, motion was seconded by Rhonda Mahaffey. The motion passed.

The public comment period was opened, and no one spoke at this time.

Scott Manuel made a motion to adopt the Maintenance Millage rate of 13.05 for 2025, motion was seconded by Rhonda Mahaffey. Motion passed.

Scott Manuel made a motion to adopt the Bond Millage rate of 7.71 for 2025, motion was seconded by Rhonda Mahaffey. Motion passed.

A representative of Expert Bookkeeping gave the financial review. Dolly Tyler made a motion to accept the review, motion was seconded by Scott Manuel. Motion passed.

Les Kolb gave the Chief's report. Rhonda Mahaffey made a motion to accept his report, motion was seconded by Scott Manuel. Motion passed.

There was a discussion that Fire District 5 has paid all obligations to Cintas and no further services needed at this time.

The Meeting was adjourned at 6:26 PM.
(PUBLISH: JUNE 12, 2025)1T
Cost is $75.00

PUBLIC NOTICE
SHERIFF'S SALE
33RD JUDICIAL DISTRICT COURT
Parish of Allen
State of Louisiana
NATIONSTAR MORTGAGE LLC
VS No. C-2024-424
VICTORIA DANIELLE BRANTLEY, VICTORIA D. BRANTLEY A/K/A, VICTORIA BRANTLEY A/K/A

By virtue of a **WRIT OF SEIZURE AND SALE** and to me directed by the Honorable Court aforesaid, I have seized and will offer for sale at public auction, to the last and highest bidder, **WITHOUT** the benefit of appraisement, at the Court House door of this Parish, in the Town of Oberlin, Parish of Allen, on **JULY 16, 2025** between legal hours, beginning at 10:00 A.M., the following described property, to-wit:

The property described in the Act of Mortgage is described as follows:

Lot 32 of Block 2 of Zone B of Guillory-Scott Subdivision, a subdivision as per plat recorded in Plat Book 1, Page 200, records of Allen Parish, Louisiana, together with all improvements situated thereon.

Seized under said Writ.

Terms UPON SUCCESSFULLY BIDDING ON THE PROPERTY, THE WINNING BIDDER MUST IMMEDIATELY PROVIDE THE SHERIFF WITH THE FULL AMOUNT OF THE PURCHASE PRICE PAID BY 12:00 PM (NOON) ON THE DATE OF THE SALE WITH A MONEY ORDER, CASHIER OR CERTIFIED CHECK, PLUS THEIR NAME, ADDRESS, AND PHONE NUMBER

BRANDY HOLLAND
FOR:
DOUGLAS L. HEBERT, III
SHERIFF
Sheriff's Office, Oberlin, La., JUNE 4, 2025.

COREY J. GIROIR
ATTORNEY AT LAW
PO BOX 87379
BATON ROUGE, LA 70879
Attorney for plaintiff
(PUBLISH: JUNE 12, 2025 & JULY 10, 2025)2T
Cost is $101.20

PUBLIC NOTICE
NOTICE OF APPLICATION TO SELL SUCCESSION PROPERTY AT PRIVATE SALE

PLEASE TAKE NOTICE that **Thomas James Davis, Jr.**, Administrator/Succession Representative of the **Succession of Shirley Celeste Mowad**, has filed a motion in the 33rd Judicial District Court, Parish of Allen, for authority to sell at private sale the following immovable property of the succession:

Lot 46 of Oak Park Subdivision, together with a strip of land beginning at a point on the W/L of Terry Lane at the corner of Lots 45 & 46, Oak Park Subdivision, extending thence in a Northwesterly direction along the line between Lots 45 & 46, 110 feet to lot corner common to Lots 44, 45, and 46 of said subdivision, thence in a Northeasterly direction between Lots 44 & 45 on lot line 5 feet, thence in a Southeasterly direction 111.25 feet to POB, together with all improvements thereupon made.

Located at: 1213 Terry Lane, Oakdale, Allen Parish, Louisiana

The proposed sale is to Albert Thomas Mowad for the price of $110,000, together with forgiveness by Albert Thomas Mowad of reimbursement for any and all maintenance costs, utility costs, insurance costs, property taxes, and repair costs expended by him for the Property since Decedent's death.

The sale will be subject to Court approval.

Any heir, legatee, or creditor may file an opposition to this proposed sale with the Allen Parish Clerk of Court within seven (7) days from the date of the last publication of this notice.

This notice will be published twice in the Kinder Courier, a newspaper of general circulation in the Parish of Allen, where the succession is pending and where the property is located.

DATED this 9th day of June, 2025.

Thomas James Davis, Jr.,
Administrator/Succession
Representative of the
Succession of
Shirley Celeste Mowad
Through the
Succession's attorney:
JOEL G. DAVIS
LAW OFFICE OF JOEL G. DAVIS, LLC
P. O. Box 625
Oakdale, LA 71463
(PUBLISH: JUNE 12 & 19, 2025)2T
Cost is $90.00

See LEGALS, Page 6

CornerPost Realty
LAINE FONTENOT
337-523-7744
cornerpostrealty@yahoo.com
Facebook Page:
CornerPost Realty

•**KINDER:** Block 19 of the Kingrey Addition. Lots 19, 20, 21 and .97 acre tract #8 (equal to just over two lots) for a total of 5+ city lots on west side of 16th street. $67,000 for all.
•**OBERLIN:** 2 camp lots located on Sky King Lane west of Oberlin, La. near Hwy 26 bridge. Has sewer, electrical, and water service installed. Great for RV hookup or camp. $18,000 for both.
•**REDUCED-HUNTERS TRACT:** 40 acre tract off of Ponderosa Rd near Oakdale. Mature pine and hardwood, ~~$100,000~~ $85,000.
•**REDUCED-MITTIE:** Beautiful 13.99 acre tract in Mittie, La. Open pasture with some trees along edge. No flood zone. Blacktop road frontage. Great place for home! ~~$75,000~~ $65,000
•**KINDER:** Commercial lot on 8th street next to Community Center in Kinder. Approx. 60 ft of frontage by 180 ft. deep. Great location! $69,000
•**KINDER:** Hunters Tract - 40 acre hardwood tract near Kinder, $84,000

Notice is hereby given pursuant to Article 7, Section 23(C) of the Louisiana Constitution and R.S. 47:1705(8) that a public hearing of Hospital Service District No 3 in Allen Parish will be held at its regular meeting place in the main conference room of the Allen Parish Community Healthcare administration building, located at 108 6th Ave, Kinder, LA 70648 on Tuesday, July 29, 2025 at 4:30 p.m. to consider levying additional or increased millage rates without further voter approval or adopting the adjusted millage rates after reassessment and rolling forward to rates not to exceed the prior year's maximum. The estimated amount of tax revenues to be collected in the next year from the increased millage is $950,570.99, and the amount of increase in taxes attributable to the millage increase is $24,005.58.

NOW ACCEPTING REGISTRATION FOR OUR UPCOMING PHLEBOTOMY CLASS !

We are proud to announce that our Phlebotomy Class will begin on Thursday, July 19th 2025, at Allen Parish Hospital in Kinder Louisiana.

CLASS DETAILS:
Schedule: Every Thursday evening from 6: pm to 8:30 pm
Duration: 8 weeks
Location: Allen Parish Hospital, Kinder Louisiana
Cost: $1,500.00
Requirements: High Diploma or GED
Identify Card / Driver License
Instructors: Venisha Hayes MLT
Deborah Layton MT

To reserve your spot or for more information, please contact us at the number listed below

Venisha Hayes - 318-305 - 3790
Deborah Layton - 434-848-5623

JS 44 (Rev. 03/24)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. *(SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)*

I. (a) PLAINTIFFS

ExxonMobil Low Carbon Solutions Onshore Storage, LLC

(b) County of Residence of First Listed Plaintiff Texas and New Jersey
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys *(Firm Name, Address, and Telephone Number)*

Jones Walker LLP; 201 St. Charles Ave, 50th Floor
New Orleans, LA 70170; 504-582-8000

DEFENDANTS

Allen Parish Police Jury and
Douglas L. "Doug" Hebert III, in his official capacity as

County of Residence of First Listed Defendant Allen Parish
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys *(If Known)*

II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ 1 U.S. Government Plaintiff
- ☐ 3 Federal Question *(U.S. Government Not a Party)*
- ☐ 2 U.S. Government Defendant
- ☒ 4 Diversity *(Indicate Citizenship of Parties in Item III)*

III. CITIZENSHIP OF PRINCIPAL PARTIES *(Place an "X" in One Box for Plaintiff and One Box for Defendant)*
(For Diversity Cases Only)

	PTF	DEF		PTF	DEF
Citizen of This State	☐ 1	☒ 1	Incorporated *or* Principal Place of Business In This State	☐ 4	☐ 4
Citizen of Another State	☒ 2	☐ 2	Incorporated *and* Principal Place of Business In Another State	☐ 5	☐ 5
Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6

IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

Click here for: Nature of Suit Code Descriptions.

CONTRACT
- ☐ 110 Insurance
- ☐ 120 Marine
- ☐ 130 Miller Act
- ☐ 140 Negotiable Instrument
- ☐ 150 Recovery of Overpayment & Enforcement of Judgment
- ☐ 151 Medicare Act
- ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans)
- ☐ 153 Recovery of Overpayment of Veteran's Benefits
- ☐ 160 Stockholders' Suits
- ☐ 190 Other Contract
- ☐ 195 Contract Product Liability
- ☐ 196 Franchise

TORTS

PERSONAL INJURY
- ☐ 310 Airplane
- ☐ 315 Airplane Product Liability
- ☐ 320 Assault, Libel & Slander
- ☐ 330 Federal Employers' Liability
- ☐ 340 Marine
- ☐ 345 Marine Product Liability
- ☐ 350 Motor Vehicle
- ☐ 355 Motor Vehicle Product Liability
- ☐ 360 Other Personal Injury
- ☐ 362 Personal Injury - Medical Malpractice

PERSONAL INJURY
- ☐ 365 Personal Injury - Product Liability
- ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability
- ☐ 368 Asbestos Personal Injury Product Liability

PERSONAL PROPERTY
- ☐ 370 Other Fraud
- ☐ 371 Truth in Lending
- ☐ 380 Other Personal Property Damage
- ☐ 385 Property Damage Product Liability

FORFEITURE/PENALTY
- ☐ 625 Drug Related Seizure of Property 21 USC 881
- ☐ 690 Other

LABOR
- ☐ 710 Fair Labor Standards Act
- ☐ 720 Labor/Management Relations
- ☐ 740 Railway Labor Act
- ☐ 751 Family and Medical Leave Act
- ☐ 790 Other Labor Litigation
- ☐ 791 Employee Retirement Income Security Act

IMMIGRATION
- ☐ 462 Naturalization Application
- ☐ 465 Other Immigration Actions

BANKRUPTCY
- ☐ 422 Appeal 28 USC 158
- ☐ 423 Withdrawal 28 USC 157

INTELLECTUAL PROPERTY RIGHTS
- ☐ 820 Copyrights
- ☐ 830 Patent
- ☐ 835 Patent - Abbreviated New Drug Application
- ☐ 840 Trademark
- ☐ 880 Defend Trade Secrets Act of 2016

SOCIAL SECURITY
- ☐ 861 HIA (1395ff)
- ☐ 862 Black Lung (923)
- ☐ 863 DIWC/DIWW (405(g))
- ☐ 864 SSID Title XVI
- ☐ 865 RSI (405(g))

FEDERAL TAX SUITS
- ☐ 870 Taxes (U.S. Plaintiff or Defendant)
- ☐ 871 IRS—Third Party 26 USC 7609

OTHER STATUTES
- ☐ 375 False Claims Act
- ☐ 376 Qui Tam (31 USC 3729(a))
- ☐ 400 State Reapportionment
- ☐ 410 Antitrust
- ☐ 430 Banks and Banking
- ☐ 450 Commerce
- ☐ 460 Deportation
- ☐ 470 Racketeer Influenced and Corrupt Organizations
- ☐ 480 Consumer Credit (15 USC 1681 or 1692)
- ☐ 485 Telephone Consumer Protection Act
- ☐ 490 Cable/Sat TV
- ☐ 850 Securities/Commodities/ Exchange
- ☐ 890 Other Statutory Actions
- ☐ 891 Agricultural Acts
- ☐ 893 Environmental Matters
- ☐ 895 Freedom of Information Act
- ☐ 896 Arbitration
- ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision
- ☒ 950 Constitutionality of State Statutes

REAL PROPERTY
- ☐ 210 Land Condemnation
- ☐ 220 Foreclosure
- ☐ 230 Rent Lease & Ejectment
- ☐ 240 Torts to Land
- ☐ 245 Tort Product Liability
- ☐ 290 All Other Real Property

CIVIL RIGHTS
- ☐ 440 Other Civil Rights
- ☐ 441 Voting
- ☐ 442 Employment
- ☐ 443 Housing/ Accommodations
- ☐ 445 Amer. w/Disabilities - Employment
- ☐ 446 Amer. w/Disabilities - Other
- ☐ 448 Education

PRISONER PETITIONS

Habeas Corpus:
- ☐ 463 Alien Detainee
- ☐ 510 Motions to Vacate Sentence
- ☐ 530 General
- ☐ 535 Death Penalty

Other:
- ☐ 540 Mandamus & Other
- ☐ 550 Civil Rights
- ☐ 555 Prison Condition
- ☐ 560 Civil Detainee - Conditions of Confinement

V. ORIGIN *(Place an "X" in One Box Only)*

☒ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from Another District *(specify)* ☐ 6 Multidistrict Litigation - Transfer ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing ***(Do not cite jurisdictional statutes unless diversity)***:
28 U.S.C. § 1332

Brief description of cause:
Federal and State Law preempts a local ordinance that is aggrieving plaintiff

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A **CLASS ACTION** UNDER RULE 23, F.R.Cv.P.

DEMAND $ Exceeds $75,000

CHECK YES only if demanded in complaint:
JURY DEMAND: ☐ Yes ☒ No

VIII. RELATED CASE(S) IF ANY *(See instructions):*

JUDGE _____ DOCKET NUMBER _____

DATE 07/01/2025

SIGNATURE OF ATTORNEY OF RECORD */s/ Michael C. Drew*

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>, Stephen Swiber <Stephen.Swiber@la.gov>
Subject: FW: Hackberry Sequestration Class VI Application No. 45026--Public Hearing
Date: Thu, 3 Apr 2025 13:48:47 +0000
Importance: Normal
Attachments: FINAL_Notice_of_Hearing_App_No._45026.pdf
Inline-Images: image003.png; image001.png

FYI – the first Class VI CCS project public comment period/hearing has been set and sent out to public. There will likely be some media interest on this going forward

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

All,

Please see notice for the public hearing for Application No. 45026.

Rebecca Edwards
Petroleum Scientist | Class VI Geologist
Injection & Mining Division

225.342.8639 | rebecca.edwards@la.gov
617 North Third Street | Baton Rouge, LA 70802
in | www.dnr.louisiana.gov/

PUBLIC NOTICE

Department of Energy and Natural Resources
Office of Conservation
Injection & Mining Division

Hackberry Carbon Sequestration, LLC
Class VI Injection Well
Cameron Parish

Docket No. IMD 2025-04
Application No. 45026

Pursuant to provisions of the laws of the State of Louisiana and particularly Title 43 of the Louisiana Revised Statutes of 1950 as amended, and provisions of Statewide Order No. 29-N-6, notice is hereby given that the Injection & Mining Division has prepared a Draft Permit for the application referenced below and that the Commissioner of Conservation will conduct a public hearing to solicit comments on the Draft Permit. The hearing will be held in the Hackberry Community Center, 980 Main St, Hackberry, LA 70645 at 6:00 pm on May 5, 2025.

At such hearing, the commissioner or his designated representative will give any interested person the opportunity to present testimony, facts, or oral or written comments relative to the Draft Permit prepared in response to an application by:

Hackberry Carbon Sequestration, LLC
1500 Post Oak Blvd, Suite 1000
Houston, TX 77056

Hackberry Carbon Sequestration, LLC has applied to the Office of Conservation, Injection and Mining Division for a permit to drill, construct, and operate a Class VI Injection Well for the geologic sequestration of carbon dioxide in Section 12, Township 12 South, Range 11 West, of Cameron Parish. The facility's coordinates are 30°01'55.08295" N, 93°27'12.07152" W. The proposed well will be identified as Hackberry Carbon Sequestration Well No. 001. The well will be drilled to a depth of approximately 10,100 feet below ground level (BGL). The base of the lowermost underground source of drinking water (USDW) at this location occurs at an approximate depth of 1,090 feet BGL.

A copy of the Draft Permit, fact sheet, application, or other information concerning the application may be obtained by writing to Gavin Broussard, Office of Conservation, Injection & Mining Division, 617 North 3rd Street, Ninth Floor, Baton Rouge, LA 70802 or by calling (225) 342-5515. The Draft Permit and fact sheet are available for viewing on the Louisiana Department of Energy and Natural Resources – Injection & Mining Division webpage.

In accordance with Act 393 of the 2023 Louisiana Regular Section, accommodations will be provided upon request to people with disabilities in order to access this public hearing. To request an accommodation for this hearing, please contact DNR-HumanResources@la.gov.

During this public hearing, the hearing officer will only receive comments. The Office of Conservation will respond to all relevant comments in a written report after the conclusion of the public comment period.

Interested parties may submit written comments on the application. Written comments concerning the application must be received by the Office of Conservation no later than 4:30 P.M., May 6, 2025. Submit all comments to: Gavin Broussard, Office of Conservation, Injection & Mining Division, 617 North 3rd Street, Ninth Floor, Baton Rouge, LA 70802. Comments may also be e-mailed to info@la.gov. Please reference: Hackberry Carbon Sequestration – Class VI Permit – Docket No. IMD 2025-04.

All persons having interest in the aforesaid shall take notice thereof.

By order of:

Steven Giambrone
Office of Conservation

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Stephen Swiber <Stephen.Swiber@LA.GOV>, Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: RE: REporter Pipeline map question
Date: Thu, 17 Oct 2024 17:12:26 +0000
Importance: Normal
Inline-Images: image001.png

No, we do not make pipeline maps available online due to U.S. Department of Defense issues with sensitive infrastructure. Their security concerns are why even the federal online pipeline mapping system only lets you look at one parish/county at a time, not a whole state or region. The closest you could come on our site would be looking for Coastal Use Permits in the Coastal Zone for lines that had to get a CUP.

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Stephen Swiber <Stephen.Swiber@LA.GOV>
Sent: Thursday, October 17, 2024 11:59 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>; Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: RE: REporter Pipeline map question

That's fine by me

Would pipelines also be findable in SONRIS if that were usable for non-programmers?

STEPHEN P. SWIBER
Chief Resilience Officer
Office of Governor Jeff Landry
Office: (225) 342-6682 Cell: (225)506-6384
www.Louisiana.gov

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Thursday, October 17, 2024 11:55 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: REporter Pipeline map question

If OK by y'all, I would direct him to the U.S. DOT's Pipeline site, which would allow him to check parish-by-parish pipeline routes. The other stuff he's talking about are a set of questions he sent the other day that I am still getting approval on draft answers on before I run them by you.
OK to give him the pipeline answer?

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: David Mitchell <dmitchell@theadvocate.com>
Sent: Thursday, October 17, 2024 11:46 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: Pipeline map question

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Patrick,

I realize I threw a lot at you yesterday, so I've asked for more time on the sequestration story. So you have until Monday/Tuesday to get back on that. But I also have another question.

I have been speaking with some folks who are telling me one of the big things driving where these sequestration wells are being tested is proximity to pipelines. I had our graphics people overlay the Denbury Green and High lines with your map of well sites. They pretty clearly match up.

So, I have a question about an area of southwest/far western La. where some well test sites are located. If you look at them, they are in a diagonal nw/se line going through Jeff Davis and Sabine parishes that seems to be tracking a pipeline.
If my perception is correct, what line is it and where can I find something showing its path? See attached map.
Tks.

David Mitchell
Reporter
The Advocat[redacted]

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From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Stephen Swiber <Stephen.Swiber@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>, Kate Kelly <Kate.Kelly@LA.GOV>
Subject: Re: Texas expanding offshore area for CCS to 1 million acres
Date: Mon, 1 Jul 2024 22:44:28 +0000
Importance: Normal
Inline-Images: image002.jpg

Got it, thanks much

Patrick Courreges
DENR Communications Director
ofc: 225 342 0510
cell: [redacted]

From: Stephen Swiber <Stephen.Swiber@LA.GOV>
Sent: Monday, July 1, 2024 4:49:21 PM
To: Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Patrick Courreges <Patrick.Courreges@LA.GOV>; Kate Kelly <Kate.Kelly@LA.GOV>
Subject: Re: Texas expanding offshore area for CCS to 1 million acres

Sounds good!

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From: Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Sent: Monday, July 1, 2024 4:42:12 PM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>; Kate Kelly <Kate.Kelly@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: Re: Texas expanding offshore area for CCS to 1 million acres

Looping in Stephen from our policy team to review this response. If he has no edits, it is good to go!

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Date: Monday, July 1, 2024 at 10:11 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: FW: Texas expanding offshore area for CCS to 1 million acres

Schleifstein following up on article about Texas opening up state offshore waters to carbon sequestration projects by pushing out a request for proposals from operators from areas the Railroad Commission has designated, he wants to know if we've done the same.

The answer is that we don't do it that way, Louisiana doesn't open up particular lands/water bottoms with requests for proposal – any operator who wants to can approach the State Mineral and Energy Board with a proposed operating agreement for state-owned offshore water bottoms wherever they want to try it, the same as they can propose leasing oil and gas mineral rights. There's already one operating agreement we have with Venture Global in the southwest part of the state that envisions use of offshore pore space for CCS, though the injection wells will be onshore.

Okay to respond?

Patrick Courreges

Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Mark Schleifstein <mschleifstein@theadvocate.com>
Sent: Monday, July 1, 2024 9:43 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: Re: Texas expanding offshore area for CCS to 1 million acres

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Has Louisiana done this yet?

https://insideclimatenews.org/news/29062024/texas-gulf-coast-carbon-dioxide-injection-wells/

Mark Schleifstein
Environment reporter
mschleifstein@theadvocate.com
The Times-Picayune | The New Orleans Advocate
840 St. Charles Ave.
New Orleans LA 70130
Mobile: [redacted]

The Times-Picayune | nola.com

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Kate Kelly <Kate.Kelly@LA.GOV>, Stephen Swiber <Stephen.Swiber@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: RE: Advocate on Class VI and Pipeline map question
Date: Tue, 22 Oct 2024 17:01:40 +0000
Importance: Normal
Inline-Images: image001.png

Thanks much

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Kate Kelly <Kate.Kelly@LA.GOV>
Sent: Tuesday, October 22, 2024 10:43 AM
To: Stephen Swiber <Stephen.Swiber@LA.GOV>; Patrick Courreges <Patrick.Courreges@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: Re: Advocate on Class VI and Pipeline map question

Fine with me

Kate Kelly
Director of Communications
Office of Governor Jeff Landry
www.Louisiana.gov

From: Stephen Swiber <Stephen.Swiber@LA.GOV>
Date: Tuesday, October 22, 2024 at 9:45 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>, Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Subject: RE: Advocate on Class VI and Pipeline map question

The new answers look good to me. Thanks, Pat

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Tuesday, October 22, 2024 9:34 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: Advocate on Class VI and Pipeline map question

Mitchell with The Advocate reaching out again – okay to answer with draft responses below and steer him to U.S. DOT maps on his pipeline question?

Please refer to me to or explain the rules on monitoring CO2 injection, how that information will be made public and how could someone use it to determine how much CO2 is being injected under their homes and how much they should be paid.

Operators will be required submit either semi-annual or quarterly reports that detail operational and injection information. This includes the volume and/or mass of CO2 injected on a monthly basis. This will be based on our existing system for Class I reporting where the information is broken out based on month, but the reports themselves are submitted quarterly. Similar to the Class I quarterly reports, this information will be publicly available on our SONRIS database.

As to the method of how landowners should be paid, that is something they can negotiate with operators seeking to lease the pore space below their property. As of the 2024 Regular Legislative Session, state law does not allow expropriation for CO2 injection, and operators must have at least 75 percent of the associated acreage under lease before any injection would be allowed.

Is it correct that companies who plan to inject under someone's property must pay them for it? What is the current standard for these payments? What if someone else has the mineral rights?

Under current interpretations of state law, a CO2 injector would have to compensate the surface owners of property within the injection unit, regardless of whether that surface owner holds the mineral rights. If the surface owner leases those pore space rights, the payment methodology would be set within the terms of that lease agreement. As noted, operators would have to get a minimum of 75 percent of the property within the injection under lease before any injection could begin, and expropriation is not allowed in state law for this kind of operation. For unleased landowners within that unit, the method for calculating their compensation would be set by the Office of Conservation.

As the legislation calling for the creation of units for CO2 injection was passed only earlier this year, the Office of Conservation is still seeking input for the rule-making process on how best to determine compensation for unleased owners.

What is the current status of the unitization rules for CO2 capture and please explain sort of the choices people who are making these rules must make on how it is set up: protect the right to inject or protect the right to object.

Given that the legislation calling for unitization of CO2 injection zones was just passed earlier this year, DENR is currently seeking comment from stakeholders/landowners/etc. on how best to design the unitization rules and determine how unleased surface owners would be compensated.

Please describe in terms of general scale the areal extent being anticipated for injection? 1 to 5 miles from the injection point, 5 to 20 miles, 10 to 50 miles, 50 to 100 miles? What is the projected term of injection? I understand the CO2 is supposed to stay down there forever.

The scale could vary from around a mile to several square miles, depending on geological factors like thickness of the injection zone, type of rock and whether the properties of that rock vary across the extent of the project area or are fairly consistent. The number of injection wells and proposed injection volumes/conditions.

I have been told the injection process itself is very noisy. In general, what kind of equipment will be needed to inject CO2? Is any of it noisy beyond standard construction/business activities?

This is not something that the Class VI program has regulatory jurisdiction over. That being said, noise levels might depend on where compressors are located relative to the wellhead.

At what points should residents who will be affected by sequestration be notified? Some folks I spoke with in St. Helena said they really had no idea about what was happening until they started rattling cages with the parish and ended up having a community meeting with the company, heard through other sources, or were approached by a landman. What are your public notification requirements for a test well? For an injection well? Are there other points where a parish government would be involved as far as a permit/hearing?

Here's every point of the process in regulations, statute or IMD where notice goes out or in -

Class V

When IMD first receives an application it is added to the Class V tracker on our Class VI web page. A copy of the application isn't posted on the website but people can come in to review and make copies of the hard copy.

Per Act 645 from this past session, applicants must make a good faith effort to send notice of the submission via US mail to the last operator of record for any well within 500 ft of the proposed well location and anyone with a mineral lease or mineral interest within 500 ft of the proposed well. This has to happen within 10 days of the application being filed.

Once technical review is complete, we prepare a draft permit. Before the draft permit is advertised in the paper, we send notification to the parish-president/police jury president for the parish where the proposed well will be located. At this point, the final draft of the application is posted on our website.

To notify folks of the draft permit, public comment period, and public hearing (if one has been called/requested), we send notice out to local governing authorities, local emergency response authorities, relevant state and federal agencies, legislators for that parish, and anyone who has requested to be put on our UIC interested parties list. We send e-mails to everyone we have e-mail addresses for then hard copy for everyone else. Hearing information is posted on our website.

We post the post the final permitting decision on the application tracker on our website. There will be several documents available for review including a Basis for Decision, public comments and the hearing transcript, responses to any relevant public comments, the permit (if one is issued), and the final application.

We send the Basis for Decision and response to comments to all commenters.

Class VI

When IMD receives notification that the complete application has been submitted on the online portal, we add this information to the online tracker on our Class VI web page.

Per Act 645, the applicant must make a good faith effort to send notice of the application to the last operator of record for any oil and gas well located with the AOR and to anyone with a mineral lease or mineral interest within the modeled plume.

Once technical review is complete, we'll prepare a draft permit. Before the draft permit is advertised in the paper, we'll send notification to the parish-president/police jury president for the parish where the proposed well will be located. At this point, the final draft of the application is posted on our website.

To notify folks of the draft permit, public comment period, and public hearing, we send notice out to local governing authorities, local emergency response authorities, relevant state and federal agencies, legislators for that parish, anyone who has requested to be put on our UIC interested parties list, and everyone on our Class VI interested parties list. Hearing information is posted on our website.

We post the final permitting decision on the application tracker on our website. There will be several documents available for review including public comments and the hearing transcript, responses to any relevant public comments, the permit in the form of a Conservation Order (if one is issued), and the final application.

In this northern Livingston and eastern St. Helena area, based on my knowledge, I know the Southern Hills aquifer extends through this area, but how widely is it used and for what purposes? These are areas beyond the capital area district. Is there any chance a leak into the aquifer in these areas could end up farther west in portions of the aquifer that are used heavily for public consumption?

The Southern Hills aquifer extends all through the area in question and is generally the primary source of drinking water. The whole point of the UIC program as a whole and the Class VI permitting process specifically is to protect USDW, minimize the chances for leaks and maximize the ability to take correction action if necessary. Any proposed injection zones would have to be well away from the base of USDW, and separated by sufficient confining layers to prevent upward movement, as determined by Conservation engineers and geologists. And Conservation has the authority to order injection halted if need be to prevent continuous lateral or vertical spread if a leak were to be detected.

Remind me again how much impermeable shale you are requiring as minimum. It was 200 feet right?

There is not a set measurement it is case by case, depending greatly on the structure and makeup of the confining layers.

Please verify: No injection wells have been approved. None is set yet for a public hearing. No injection application records are public yet.

No Class VI wells have been approved to no date, nor reached the stage of public comment. Due to the state having to abide by EPA Region 6 practices allowing blanket claims of business confidentiality, no Class VI application record information can be made public until the public comment period

When will the injection application records become public?

The Class VI applications will each be made public as the reach the public comment step in the review process. Class V records are already public but we don't post the application on the website until all revisions have been accepted, because the application can change radically from initial submission to being put out for public comment. But people can always come in and request to view the hard copy applications.

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: David Mitchell <dmitchell@theadvocate.com>
Sent: Tuesday, October 22, 2024 9:22 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: RE: Pipeline map question

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Hey,

Will you be able to get this this week? Can you answer the pipeline question first so I can build a map? Graphics needs time.
Tks.

From: David Mitchell
Sent: Thursday, October 17, 2024 11:46 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: Pipeline map question

Patrick,

I realize I threw a lot at you yesterday, so I've asked for more time on the sequestration story. So you have until Monday/Tuesday to get back on that. But I also have another question.

I have been speaking with some folks who are telling me one of the big things driving where these sequestration wells are being tested is proximity to pipelines. I had our graphics people overlay the Denbury Green and High lines with your map of well sites. They pretty clearly match up.

So, I have a question about an area of southwest/far western La. where some well test sites are located. If you look at them, they are in a diagonal nw/se line going through Jeff Davis and Sabine parishes that seems to be tracking a pipeline.
If my perception is correct, what line is it and where can I find something showing its path? See attached map.
Tks.

David Mitchell
Reporter
The Advocate
[redacted]

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From: Patrick Courreges <Patrick.Courreges@LA.GOV>
To: Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>, Kate Kelly <Kate.Kelly@LA.GOV>, Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: Re: Politico questions on CapturePoint expansion/ Class VI questions
Date: Wed, 2 Oct 2024 18:40:35 +0000
Importance: Normal

Thanks much, will ship it out

Patrick Courreges
DENR Communications Director
ofc: 225 342 0510
cell: [redacted]

From: Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>
Sent: Wednesday, October 2, 2024 1:39:52 PM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>; Kate Kelly <Kate.Kelly@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: Re: Politico questions on CapturePoint expansion/ Class VI questions

This is good! Stephen is also ok with it.

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Date: Wednesday, October 2, 2024 at 10:27 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>, Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>, Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: Politico questions on CapturePoint expansion/ Class VI questions

Politico/E&E asking about proposed class VI CCS project in Vernon Parish – see below for draft responses. Okay to send?

- ***Has CapturePoint been approved for a Class VI permit for its Central Louisiana Regional Carbon Storage Hub in Vernon Parish?***
  No
- ***Has CapturePoint applied for additional Class VI permits?***
  Capture Point has two applications for two projects, each involving six wells – one project in Vernon and the other in Rapides Parish
- ***Has CapturePoint communicated with DNR plans to expand their pipeline leading from the Haynesville Basin to Vernon Parish?***
  CapturePoint has not yet filed application for a carbon pipeline associated with the Vernon Parish project
- ***Once a company receives a Class VI permit, can they apply for additional wells through the same permit? In other words, how would it work if a company that already has a Class VI permits wants to expand the project for which it has a permit? Can they just drill more wells or do they need an additional Class VI permit?***
  Each additional well would require its own Class VI permit
- ***So far, how many Class VI permit applications has DNR received since Louisiana was granted primacy?***
  DENR has 26 Class VI permit applications – 23 that were initially filed with EPA Region 6 and 3 that were submitted after formal handoff of the program to the state on Feb. 5, 2024

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Shelby Webb <swebb@eenews.net>
Sent: Wednesday, October 2, 2024 9:59 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: CapturePoint expansion/ Class VI questions

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Hi Patrick,
This is Shelby Webb over at E&E News. Hope you're doing well!
I'm working on a story about CapturePoint's Class VI project up in northwest Louisiana. At a carbon capture conference earlier this week, their CEO said a 150-mile carbon dioxide pipeline leading to their Central Louisiana Regional Carbon Storage Hub could be expanded to roughly 500 miles in length. I had a few questions, including:

- Has CapturePoint been approved for a Class VI permit for its Central Louisiana Regional Carbon Storage Hub in Vernon Parish?
- Has CapturePoint applied for additional Class VI permits?
- Has CapturePoint communicated with DNR plans to expand their pipeline leading from the Haynesville Basin to Vernon Parish?
- Once a company receives a Class VI permit, can they apply for additional wells through the same permit? In other words, how would it work if a company that already has a Class VI permits wants to expand the project for which it has a permit? Can they just drill more wells or do they need an additional Class VI permit?
- So far, how many Class VI permit applications has DNR received since Louisiana was granted primacy?

My deadline is 4 p.m. CST today, so anything I could get before then would be great.
If you have any questions or would like to chat over the phone, feel free to call my cell at (941) 549-4098.
Thanks, and I hope to hear from you soon!
Best,
Shelby Webb

Shelby Webb

Oil and gas reporter

E&E NEWS at **POLITICO**

swebb@eenews.net

(c): [redacted]

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From: "Stephen Swiber" <Stephen.Swiber@LA.GOV>
To: "Patrick Courreges" <Patrick.Courreges@LA.GOV>, "Kate Kelly" <Kate.Kelly@LA.GOV>, "Elizabeth Crochet" <Elizabeth.Crochet@LA.GOV>
Subject: Re: Reporter inquiry - Boell Foundation: Air Products, blue hydrogen facility questions
Date: Tue, 04 Feb 2025 20:15:19 -0000
Importance: Normal

Looks good pat

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From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Tuesday, February 4, 2025 10:50:18 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: Reporter inquiry - Boell Foundation: Air Products, blue hydrogen facility questions

Reporter with some faulty info asking about Air Products/Lake Maurepas Class VI project – my draft responses below,

Okay to respond?

Given the decades-old local restrictions on drilling and dredging that were in place for Lake Maurepas, was there a precedent the state looked to in approving the operating agreement between the state and the company Air Products? Why override local law?
Your sources may have some things confused. There are no local restrictions on those activities. There is a restriction on new oil and gas leasing in Lake Pontchartrain, which is connected to, but not part of, Lake Maurepas and that restriction was set by the state Mineral and Energy Board. And the restriction on dredging (again for Lake Pontchartrain, not Lake Maurepas) is a restriction specifically on shell dredging which was basically strip mining the lake bottom for oyster shell material, not a restriction on targeted dredging for navigation/waterflow (though that activity does require a Coastal Use Permit).

Can state officials point to any industry precedent for this type of facility and some of the claims its spokespeople have previously made, such as the 95% of greenhouse gas emissions it claims it will be able to sequester underneath Lake Maurepas' floor?
DENR does not have jurisdiction over the carbon capture side of these processes, only the carbon sequestration and thus makes no statements about the efficiency of the capture process. Our role is to regulate the activities involved in the transportation and disposal of carbon dioxide associated with these activities, not how it is initially gathered.

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Xander Peters <freelancer.xander@gmail.com>
Sent: Tuesday, February 4, 2025 2:32 AM

To: DNR Public Information <info@LA.GOV>
Subject: Boell Foundation: Air Products, blue hydrogen facility questions

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Hi there,

I'm Xander Peters, a writer and reporter based in South Louisiana and East Texas. I'm working on a reported paper about the blue hydrogen and ammonia facility that will be based near Lake Maurepas for the Boell Foundation, where I'm currently a media fellow.

I have a few questions about the company Air Products blue hydrogen and ammonia facility currently under construction near Louisiana's Lake Maurepas. Could you try to get answers back to the questions I'm including below before we go to press on Thursday?

Given the decades-old local restrictions on drilling and dredging that were in place for Lake Maurepas, was there a precedent the state looked to in approving the operating agreement between the state and the company Air Products? Why override local law?

Can state officials point to any industry precedent for this type of facility and some of the claims its spokespeople have previously made, such as the 95% of greenhouse gas emissions it claims it will be able to sequester underneath Lake Maurepas' floor?

Thank you for your help.

Best,
--
Xander Peters
Writer, reporter: my work
New Orleans, LA / Kirbyville, TX
C: [redacted]
Twitter: @xander_etx

From: "Stephen Swiber" <Stephen.Swiber@LA.GOV>
To: "Patrick Courreges" <Patrick.Courreges@LA.GOV>, "Kate Kelly" <Kate.Kelly@LA.GOV>, "Elizabeth Crochet" <Elizabeth.Crochet@LA.GOV>
Subject: Re: The Advocate Inquiry
Date: Mon, 06 Jan 2025 15:39:37 -0000
Importance: Normal

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From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Monday, January 6, 2025 9:25:44 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: The Advocate Inquiry

The Advocate asking for records on Denbury expropriation of land for a CO2 pipeline. Long story short, this is probably tied to dispute brought by landowner who thinks their original right-of-way contract with Denbury means the landowner now owns a section of Denbury's Green pipeline (built in 2009 for moving CO2 for EOR and CCS across the state) and Denbury says different, so they are fighting about it in court. Denbury sought new Certificate of Public Convenience and Necessity in 2024 that Conservation initially denied for lack of need, then Denbury came back making a stronger case for why they needed it and it was granted. These are public records that media can have and we have three certificates for the company - from 2008 (original), from 2014 (change of operator name), and 2024 (re-asserting need to expropriate)

Okay to respond?

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Christopher Cartwright <christopher.cartwright@theadvocate.com>
Sent: Saturday, January 4, 2025 2:36 PM
To: DNR Public Information <info@LA.GOV>
Subject: The Advocate Inquiry

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Hi there,

I'm a reporter with The Advocate newspaper, and I'm writing about a few expropriation cases in Ascension Parish brought by Denbury Gulf Coast Pipelines LLC. I was wondering if the company had received a certificate of public convenience and necessity pursuant to RS 30:1107. If so, could I be sent a copy of it?

Sincerely,

Christopher Cartwright
Reporter, *The Advocate*
christopher.cartwright@theadvocate.com
[redacted]

From: "Stephen Swiber" <Stephen.Swiber@LA.GOV>
To: "Patrick Courreges" <Patrick.Courreges@LA.GOV>, "Kate Kelly" <Kate.Kelly@LA.GOV>, "Elizabeth Crochet" <Elizabeth.Crochet@LA.GOV>
Subject: Re: Press inquiry for Louisiana DENR from EE News on June 27
Date: Fri, 27 Jun 2025 20:57:48 -0000
Importance: Normal

Sure!



STEPHEN P. SWIBER
Chief Resilience Officer
Office of Governor Jeff Landry
Office: (225) 342-6682
Cell: (225)506-6384
www.Louisiana.gov

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Friday, June 27, 2025 3:55:53 PM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: Press inquiry for Louisiana DENR from EE News on June 27

E&E/Politico reporter asking about Class VI permit applications/review – draft responses below. Ok to respond?

1. ***The comment period closed on May 6 for the draft Class VI permit for Hackberry Carbon Sequestration. Does the Louisiana DENR have a time estimate for when a final Class VI permit could be issued?***
   Comments are still being reviewed, thus there is no current time estimate
2. ***How many comments did the Louisiana DENR receive on the draft Class VI permit for Hackberry Carbon Sequestration?***

   The comment period closed on June 6, as DENR extended it a month, per request. DENR received 18 written comments, which came in at about 200 pages total, as some were quite lengthy. DENR is still awaiting transcript of the public hearing to get full tally of comments there.
3. ***For Venture Global CCS Cameron, LLC, I see that the DENR's technical review started in July of 2024. Can you comment on when the technical review will end?***
   There is no set time for technical review – the time it takes can vary widely based on number and type of data/regulatory deficiencies our staff may see in the applications and how long it takes for applicants to response with corrections to those issues.

Patrick Courreges
Communications Director

La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Carlos Anchondo <canchondo@eenews.net>
Sent: Friday, June 27, 2025 11:57 AM
To: DNR Public Information <info@LA.GOV>; Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: Press inquiry for Louisiana DENR from EE News on June 27

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Good afternoon, Patrick,

Carlos here with E&E News.

I'm working on a story about LNG terminals and carbon capture, and I have a few questions that I'm asking the Louisiana DENR to comment on.

Those are:

1. The comment period closed on May 6 for the draft Class VI permit for Hackberry Carbon Sequestration. Does the Louisiana DENR have a time estimate for when a final Class VI permit could be issued?
2. How many comments did the Louisiana DENR receive on the draft Class VI permit for Hackberry Carbon Sequestration?
3. For Venture Global CCS Cameron, LLC, I see that the DENR's technical review started in July of 2024. Can you comment on when the technical review will end?

My deadline is 3:30 p.m. (Eastern time) today, June 27.

Please let me know what name to attach to any response. Thanks!

Thank you,
Carlos Anchondo
E&E News | POLITICO
[redacted]

From: "Stephen Swiber" <Stephen.Swiber@LA.GOV>
To: "Patrick Courreges" <Patrick.Courreges@LA.GOV>, "Kate Kelly" <Kate.Kelly@LA.GOV>, "Elizabeth Crochet" <Elizabeth.Crochet@LA.GOV>
Subject: Re: Time Sensitive Press Inquiry
Date: Mon, 07 Apr 2025 21:09:05 -0000
Importance: Normal

Good here

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From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Monday, April 7, 2025 4:08:43 PM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: Time Sensitive Press Inquiry

Reporter asking if Hackberry Class VI CCS permit has been granted and what is status of other Class VI projects. My response would be that no, Hackberry is in the public comment period, followed by walking the reporter through our Class VI permit application page. Okay to respond?

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Isaac Windes <IWindes@energyintel.com>
Sent: Monday, April 7, 2025 3:32 PM
To: DNR Public Information <info@LA.GOV>
Subject: Time Sensitive Press Inquiry

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Hello,

My name is Isaac Windes and I am a reporter for Energy Intelligence.

I am looking into doing a story on what I believe is the first Class VI well to be issues since Louisiana was granted primacy.

Is it accurate to describe the Hackberry Carbon Sequestration project as the first permit issued?

Would you be able to provide a statement and/or make someone available to discuss this and the status of other Class VI projects?

Let me know and thanks in advance.

I am looking for confirmation as soon as possible and an interview before 2 p.m Central tomorrow if at all possible.

Isaac

Isaac Windes
Transition Technology Reporter
Energy Intelligence
ENGAGING INSIGHT | LEADING DECISIONS
+1 [redacted]
www.energyintel.com | @energyintel

From: "Stephen Swiber" <Stephen.Swiber@LA.GOV>
To: "Patrick Courreges" <Patrick.Courreges@LA.GOV>, "Kate Kelly" <Kate.Kelly@LA.GOV>, "Elizabeth Crochet" <Elizabeth.Crochet@LA.GOV>
Subject: Re: Urgent: Interview Request/Request for Comment: Venture Global CP2 Dredging and Coastal Use Permit
Date: Wed, 13 Aug 2025 13:44:29 -0000
Importance: Normal

Sounds ok from policy/regulatory perspective

How were they dewatering the slurry? Weir?



STEPHEN P. SWIBER
Chief Resilience Officer
Office of Governor Jeff Landry
Office: (225) 342-6682
Cell: (225)506-6384
www.Louisiana.gov

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Wednesday, August 13, 2025 8:41:26 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: Urgent: Interview Request/Request for Comment: Venture Global CP2 Dredging and Coastal Use Permit

FYI –
Reporter following up on dredge sediments that got away from project in the ship channel in Cameron Parish. However, reporter is confused – while Venture Global DOES have a Coastal Use Permit (CUP) where some dredging is involved, that's not what this is. This is Venture Global doing some dredging to deepen the channel for the Cameron Parish Port District. They were dumping dredge material to a confinement on land to be used to restore wetlands in the nearby wildlife refuge, and while trying to de-water the dredge slurry, too much of the sediment got out with the water they were putting back in the bayou. The upshot is that this is the Cameron Port's project (and their CUP) and VG is acting as the contractor (though VG's CP2 will obviously benefit from a deeper ship channel) and CP2's CUP is not involved with it.

Going to be reaching out to explain this to the reporter

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Philip McKenna <phil.mckenna@insideclimatenews.org>
Sent: Tuesday, August 12, 2025 10:22 AM
To: DNR Public Information <info@LA.GOV>
Subject: Urgent: Interview Request/Request for Comment: Venture Global CP2 Dredging and Coastal Use Permit

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Dear DENR Media Team,

I'm a journalist writing about ongoing construction including dredging related to Venture Global's Calcasieu Pass 2 LNG terminal in Cameron Parish, Louisiana.
For my article I would like to speak with someone or receive written comment from the Louisiana Department of Energy and Natural Resources to hear more about the dredging and the Coastal Use Permit your department issued for the project.

Specifically, I would like you to respond to the following;

A recent local media report notes that Venture Global temporarily paused dredging for CP2 due to a release of dredged material beyond the intended containment area. Can you please respond to the following questions;
1. When did dredging stop related to this recent incident?
2. Was the stoppage a full stoppage of all dredging activity related to CP2 or only a partial stoppage of some dredging activity related to the construction of CP2?
3. When do you anticipate dredging will resume?
4. What measures will be taken to ensure that dredged material does not disperse beyond the intended containment area once dredging resumes?

5. Separate from the recent incident, the Final Environmental Impact Statement for CP2 issued by the Federal Energy Regulatory Commission noted the following;
"We received comments during scoping periods and in response to the draft EIS from RESTORE regarding dredging timing restrictions during times of aquatic species migrations. Based on a migratory clock developed by RESTORE, three migratory 'pulses' of various fish and crustaceans appear to occur during March and April, June and July, and September. Additionally, we received a comment from the LDWF expressing concern regarding potential impacts on aquatic species reproductions as well as commercial harvest seasons from dredging. CP2 LNG does not anticipate timing restrictions on dredging and, as currently proposed, would dredge 6 days a week for a period of 12 to 18 months."

I see in your amended Coastal Use Permit for CP2 (attached) one of the special conditions that must be met is that "The mitigation project shall be completed within 12 months of initiation."

Are there any other special conditions, such as pauses during migration periods, that must be met to protect shrimp populations?

Please let me know as soon as possible if there is a time I can speak with someone from DENR. My deadline for an interview or to receive written comment from your department is 6pm CT on Wednesday, August 13.

Best,
Phil

--

Phil McKenna | Reporter
[redacted]
Inside Climate News | @mckennapr

Pronouns: he/him

From: "Stephen Swiber" <Stephen.Swiber@LA.GOV>
To: "Patrick Courreges" <Patrick.Courreges@LA.GOV>, "Kate Kelly" <Kate.Kelly@LA.GOV>, "Elizabeth Crochet" <Elizabeth.Crochet@LA.GOV>
Subject: RE: Politico Press inquiry for Louisiana DENR re draft Class VI permit on April 9 2025
Date: Wed, 09 Apr 2025 18:06:24 -0000
Importance: Normal

Looks good!

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Wednesday, April 9, 2025 12:41 PM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: Politico Press inquiry for Louisiana DENR re draft Class VI permit on April 9 2025

E&E/Politico reporter asking about Hackberry Class VI – went through draft responses below with IMD. Okay to respond?

1. ***It looks like the Louisiana DENR plans to hold a public meeting on the draft Class VI permit on May 5, 2025? Is that correct?***
    a. ***Where will the public meeting be held and at what time?***

Yes and yes and Hackberry Community Center at 6 pm, May 5

2. ***Can the Louisiana DENR explain why you all decided on a one-year period for Hackberry to drill and construct the Class VI well?***
    a. ***Do they only have to have started construction in that time? Not completed the well?***

Construction on the well has to begin within a year, although the commissioner may grant extension for extenuating circumstances. As to why a year, it's pretty standard timeline given in regulations at state and federal levels so that an operator doesn't just sit on a permit indefinitely.

3. ***After the May 5 public meeting, does the Louisiana DENR have an estimate of how long it will take to review public comments?***

It depends on the volume and nature of the comments – usually target 30 days, but that can change depending on whether novel or complex issues are brought up that cause the agency to re-open some portion of the application or draft permit.

4. ***When is the earliest that a final Class VI permit could be issued to Hackberry Carbon Sequestration?***

The earliest would be after all comments have been reviewed and relevant comments have been responded to or otherwise addressed, pending whether the application or draft permit need to be re-opened.

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Carlos Anchondo <canchondo@eenews.net>
Sent: Wednesday, April 9, 2025 10:51 AM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Cc: DNR Public Information <info@LA.GOV>
Subject: Press inquiry for Louisiana DENR re draft Class VI permit on April 9 2025

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Good afternoon, Patrick,

I am reaching out to ask the Louisiana Department of Energy and Natural Resources about issuing a draft Class VI permit (ORDER NO. IMD 2025-04 GS) to Hackberry Carbon Sequestration, LLC.

I asking the Louisiana DENR to comment on the following:

1. It looks like the Louisiana DENR plans to hold a public meeting on the draft Class VI permit on May 5, 2025? Is that correct?
    a. Where will the public meeting be held and at what time?
2. Can the Louisiana DENR explain why you all decided on a one-year period for Hackberry to drill and construct the Class VI well?
    a. Do they only have to have started construction in that time? Not completed the well?
3. After the May 5 public meeting, does the Louisiana DENR have an estimate of how long it will take to review public comments?
4. When is the earliest that a final Class VI permit could be issued to Hackberry Carbon Sequestration?

My deadline is 4 p.m. (Eastern time) today, April 9.

Thank you,
Carlos Anchondo
E&E News | **POLITICO**
[redacted]

From: "Stephen Swiber" <Stephen.Swiber@LA.GOV>
To: "Patrick Courreges" <Patrick.Courreges@LA.GOV>, "Kate Kelly" <Kate.Kelly@LA.GOV>, "Elizabeth Crochet" <Elizabeth.Crochet@LA.GOV>
Subject: Re: Reporter circling back on Time Sensitive Press Inquiry
Date: Tue, 08 Apr 2025 15:00:01 -0000
Importance: Normal

A-ok here

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From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Tuesday, April 8, 2025 9:48:17 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: Reporter circling back on Time Sensitive Press Inquiry

Reporter repeating question about whether Hackberry Class VI CCS permit has been granted and what is status of other Class VI projects. My response would be that no, Hackberry is in the public comment period, followed by walking the reporter through our Class VI permit application page. Okay to respond?

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: Isaac Windes <IWindes@energyintel.com>
Sent: Tuesday, April 8, 2025 9:46 AM
To: DNR Public Information <info@LA.GOV>
Subject: Re: Time Sensitive Press Inquiry

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Good morning,

I wanted to check in on this.

Thanks,

Isaac

Isaac Windes
Transition Technology Reporter
Energy Intelligence
ENGAGING INSIGHT | LEADING DECISIONS
+1 [redacted]

From: Isaac Windes <IWindes@energyintel.com>
Sent: Monday, April 7, 2025 3:32:22 PM
To: dnrinfo@la.gov <dnrinfo@la.gov>
Subject: Time Sensitive Press Inquiry

Hello,

My name is Isaac Windes and I am a reporter for Energy Intelligence.

I am looking into doing a story on what I believe is the first Class VI well to be issues since Louisiana was granted primacy.

Is it accurate to describe the Hackberry Carbon Sequestration project as the first permit issued?

Would you be able to provide a statement and/or make someone available to discuss this and the status of other Class VI projects?

Let me know and thanks in advance.

I am looking for confirmation as soon as possible and an interview before 2 p.m Central tomorrow if at all possible.

Isaac

Isaac Windes
Transition Technology Reporter
Energy Intelligence
ENGAGING INSIGHT | LEADING DECISIONS
+1 [redacted]
www.energyintel.com | @energyintel

From: "Stephen Swiber" <Stephen.Swiber@LA.GOV>
To: "Patrick Courreges" <Patrick.Courreges@LA.GOV>
Subject: Re: Followup on sequestration
Date: Fri, 18 Oct 2024 16:42:33 -0000
Importance: Normal

STEPHEN P. SWIBER
Chief Resilience Officer
Office of Governor Jeff Landry
Office: (225) 342-6682 Cell: [redacted]
www.Louisiana.gov

From: Patrick Courreges <Patrick.Courreges@LA.GOV>
Sent: Friday, October 18, 2024 8:49:27 AM
To: Kate Kelly <Kate.Kelly@LA.GOV>; Elizabeth Crochet <Elizabeth.Crochet@LA.GOV>; Stephen Swiber <Stephen.Swiber@LA.GOV>
Subject: FW: Followup on sequestration

Advocate doing a piece on CO2 sequestration and Class VI process, clearly with an eye to addressing concerns about compensation for landowners, public participation and general protection of aquifer. Okay to send these responses on to him and talk him through them as needed?

- ***Please refer to me to or explain the rules on monitoring CO2 injection, how that information will be made public and how could someone use it to determine how much CO2 is being injected under their homes and how much they should be paid.***

Operators will be required submit either semi-annual or quarterly reports that detail operational and injection information. This includes the volume and/or mass of CO2 injected on a monthly basis. This will be based on our existing system for Class I reporting where the information is broken out based on month, but the reports themselves are submitted quarterly. Similar to the Class I quarterly reports, this information will be publicly available on our SONRIS database.

- ***Is it correct that companies who plan to inject under someone's property must pay them for it? What is the current standard for these payments? What if someone else has the mineral rights?***

Under current interpretations of state law, a CO2 injector would have to compensate the surface owners of property within the injection unit, regardless of whether that surface owner holds the mineral rights. If the surface owner leases those pore space rights, the payment methodology would be set within the terms of that lease agreement. As the legislation calling for the creation of units for CO2 injection was passed only earlier this

year, the Office of Conservation is still seeking input for the rule-making process on how best to determine compensation for unleased owners.

- ***What is the current status of the unitization rules for CO2 capture and please explain sort of the choices people who are making these rules must make on how it is set up: protect the right to inject or protect the right to object.***

Given that the legislation calling for unitization of CO2 injection zones was just passed earlier this year, DENR is currently seeking comment from stakeholders/landowners/etc. on how best to design the unitization rules and determine how unleased surface owners would be compensated.

- ***Please describe in terms of general scale the areal extent being anticipated for injection? 1 to 5 miles from the injection point, 5 to 20 miles, 10 to 50 miles, 50 to 100 miles? What is the projected term of injection? I understand the CO2 is supposed to stay down there forever.***

The scale could vary from around a mile to several square miles, depending on geological factors like thickness of the injection zone, type of rock and whether the properties of that rock vary across the extent of the project area or are fairly consistent. The number of injection wells and proposed injection volumes/conditions.

- ***I have been told the injection process itself is very noisy. In general, what kind of equipment will be needed to inject CO2? Is any of it noisy beyond standard construction/business activities?***

This is not something that the Class VI program has regulatory jurisdiction over. That being said, noise levels might depend on where compressors are located relative to the wellhead.

- ***At what points should residents who will be affected by sequestration be notified? Some folks I spoke with in St. Helena said they really had no idea about what was happening until they started rattling cages with the parish and ended up having a community meeting with the company, heard through other sources, or were approached by a landman. What are your public notification requirements for a test well? For an injection well? Are there other points where a parish government would be involved as far as a permit/hearing?***

Here's every point of the process in regulations, statute or IMD where notice goes out or in -

Class V

1) When IMD first receives an application it is added to the Class V tracker on our Class VI web page. A copy of the application isn't posted on the website but people can come in to review and make copies of the hard copy.
2) Per Act 645 from this past session, applicants must make a good faith effort to send notice of the submission via US mail to the last operator of record for any well within 500 ft of the proposed well location and anyone with a mineral lease or mineral interest within 500 ft of the proposed well. This has to happen within 10 days of the application being filed.
3) Once technical review is complete, we prepare a draft permit. Before the draft permit is advertised in the paper, we send notification to the parish-president/police jury president for the parish where the proposed well will be located. At this point, the final draft of the application is posted on our website.
4) To notify folks of the draft permit, public comment period, and public hearing (if one has been called/requested), we send notice out to local governing authorities, local emergency response authorities, relevant state and federal agencies, legislators for that parish, and anyone who has requested to be put on our UIC interested parties list. We send e-mails to everyone we have e-mail addresses for then hard copy for everyone else. Hearing information is posted on our website.

5) We post the post the final permitting decision on the application tracker on our website. There will be several documents available for review including a Basis for Decision, public comments and the hearing transcript, responses to any relevant public comments, the permit (if one is issued), and the final application.
6) We send the Basis for Decision and response to comments to all commenters.

Class VI

1) When IMD receives notification that the complete application has been submitted on the online portal, we add this information to the online tracker on our Class VI web page.
2) Per Act 645, the applicant must make a good faith effort to send notice of the application to the last operator of record for any oil and gas well located with the AOR and to anyone with a mineral lease or mineral interest within the modeled plume.
3) Once technical review is complete, we'll prepare a draft permit. Before the draft permit is advertised in the paper, we'll send notification to the parish-president/police jury president for the parish where the proposed well will be located. At this point, the final draft of the application is posted on our website.
4) To notify folks of the draft permit, public comment period, and public hearing, we send notice out to local governing authorities, local emergency response authorities, relevant state and federal agencies, legislators for that parish, anyone who has requested to be put on our UIC interested parties list, and everyone on our Class VI interested parties list. Hearing information is posted on our website.
5) We post the final permitting decision on the application tracker on our website. There will be several documents available for review including public comments and the hearing transcript, responses to any relevant public comments, the permit in the form of a Conservation Order (if one is issued), and the final application.

- ***In this northern Livingston and eastern St. Helena area, based on my knowledge, I know the Southern Hills aquifer extends through this area, but how widely is it used and for what purposes? These are areas beyond the capital area district. Is there any chance a leak into the aquifer in these areas could end up farther west in portions of the aquifer that are used heavily for public consumption?***

The Southern Hills aquifer extends all through the area in question and is generally the primary source of drinking water. The whole point of the UIC program as a whole and the Class VI permitting process specifically is to protect USDW, minimize the chances for leaks and maximize the ability to take correction action if necessary. And Conservation has the authority to order injection halted if need be to prevent continuous lateral or vertical spread if a leak were to be detected

- ***Remind me again how much impermeable shale you are requiring as minimum. It was 200 feet right?***

There is not a set measurement it is case by case, depending greatly on the structure and makeup of the confining layers.

- ***Please verify: No injection wells have been approved. None is set yet for a public hearing. No injection application records are public yet.***

No Class VI wells have been approved to no date, nor reached the stage of public comment. Due to the state having to abide by EPA Region 6 practices allowing blanket claims of business confidentiality, no Class VI application record information can be made public until the public comment period

- ***When will the injection application records become public?***

The Class VI applications will each be made public as the reach the public comment step in the review process. Class V records are already public but we don't post the application on the website until all revisions have been accepted, because the application can change radically from initial submission to being put out for public comment. But people can always come in and request to view the hard copy applications.

Patrick Courreges
Communications Director
La. Dept. of Energy and Natural Resources
Ofc: 225-342-0510
Cell: [redacted]

From: David Mitchell <dmitchell@theadvocate.com>
Sent: Tuesday, October 15, 2024 3:36 PM
To: Patrick Courreges <Patrick.Courreges@LA.GOV>
Subject: Followup on sequestration

EXTERNAL EMAIL: Please do not click on links or attachments unless you know the content is safe.

Patrick,

As we discussed I have these follow-up questions and requests for verification/reminders ….

- Please refer to me to or explain the rules on monitoring CO2 injection, how that information will be made public and how could someone use it to determine how much CO2 is being injected under their homes and how much they should be paid.
- Is it correct that companies who plan to inject under someone's property must pay them for it? What is the current standard for these payments? What if someone else has the mineral rights?
- What is the current status of the unitization rules for CO2 capture and please explain sort of the choices people who are making these rules must make on how it is set up: protect the right to inject or protect the right to object.
- Please describe in terms of general scale the areal extent being anticipated for injection? 1 to 5 miles from the injection point, 5 to 20 miles, 10 to 50 miles, 50 to 100 miles? What is the projected term of injection? I understand the CO2 is supposed to stay down there forever.
- I have been told the injection process itself is very noisy. In general, what kind of equipment will be needed to inject CO2? Is any of it noisy beyond standard construction/business activities?
- At what points should residents who will be affected by sequestration be notified? Some folks I spoke with in St. Helena said they really had no idea about what was happening until they started rattling cages with the parish and ended up having a community meeting with the company, heard through other sources, or were approached by a landman. What are your public notification requirements for a test well? For an injection well? Are there other points where a parish government would be involved as far as a permit/hearing?
- In this northern Livingston and eastern St. Helena area, based on my knowledge, I know the Southern Hills aquifer extends through this area, but how widely is it used and for what purposes? These are areas beyond the capital area district. Is there any chance a leak into the aquifer in these areas could end up farther west in portions of the aquifer that are used heavily for public consumption?
- Remind me again how much impermeable shale you are requiring as minimum. It was 200 feet right?
- Please verify: No injection wells have been approved. None is set yet for a public hearing. No injection application records are public yet.

- When will the injection application records become public?

Can you get this by Thursday/early Friday?

Let me know.

David Mitchell
Reporter
The Advocate
Environmental Team
[redacted]